

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

TZ SSE BUYER, LLC, *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

DOCKET NO. 24-10

Served: March 24, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

INITIAL DECISION¹

I. INTRODUCTION

A. Overview

Complainant TZ SSE Buyer, LLC (“Complainant”)² filed an amended complaint alleging that Respondent Yang Ming Marine Transport Corp. (“Respondent”) violated the Shipping Act of 1984, as amended, by charging Complainant unjust and unreasonable detention and demurrage in violation of 46 U.S.C. § 41102(c) and refusing to deal or negotiate detention and demurrage charges in violation of 46 U.S.C. § 41104(a)(10). In short, Complainant argues that Respondent imposed a combined total of 705 unjust and unreasonable demurrage, detention, per diem and yard storage fees, spread across 626 container shipments (some container shipments had multiple different types of charges) from 2021 through 2022. The aggregate total of allegedly unjust and unreasonable demurrage, detention, per diem and yard storage fees is \$1,304,526.

Impact Products, LLC and Safety Zone, LLC (collectively, “Supply Source”) filed an initial Verified Complaint that was served by the Commission on February 14, 2024. Supply Source eventually filed for bankruptcy, and Complainant bought Supply Source’s assets. By means of the Verified Amended Complaint, TZ SSE Buyer, LLC was substituted as

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. Any party may file exceptions to this decision within twenty-two days of the date of service. (46 C.F.R. § 502.227).

² As explained in the main text, TZ SSE Buyer, LLC purchased the original Complainants’ assets out of bankruptcy. The original Complaint was amended to make TZ SSE Buyer, LLC, the Complainant. Therefore, the caption is appropriately amended to reflect that TZ SSE Buyer, LLC is the Complainant.

Complainant. Respondent answered and generally denied all of the allegations in both the Verified Complaint and Verified Amended Complaint.

As discussed below, I find that the Commission lacks jurisdiction over claims related to 381 of the 626 container shipments because the record lacks evidence that the containers were shipped overseas from a foreign port to a port in the United States. Accordingly, the claims related to those 381 container shipments are dismissed. The container shipments related to the dismissed claims are identified in Appendix A, lines 247 to 627.³

As for claims associated with the remaining 245 container shipments, Complainant presents insufficient evidence to meet its burden of proving that Respondent violated either 46 U.S.C. § 41102(c) or 46 U.S.C. § 41104(a)(10). The only exceptions are that Complainant carries its burden of demonstrating that the demurrage charges related to container no. TCNU2329916 from January 7, 2021, through January 12, 2021, and container no. SEGU6841518 for June 23, 2022, unjustly and unreasonably violated § 41102(c). Otherwise, Complainant's remaining claims are denied. As for the demurrage charges related to container nos. TCNU2329916 and SEGU6841518, Complainant is entitled to \$517.50 in reparations.

B. Procedural History

The original Complainants, Impact Products, LLC and Safety Zone, LLC ("Supply Source") filed a Complaint dated February 6, 2024, naming Yang Ming Marine Transport Corp., as a respondent. (*See* Complaint).

On February 14, 2024, the Secretary issued a Notice of Filing of Complaint and Assignment ("Notice of Filing"), which, among other things, indicated that the Initial Decision of the presiding judge was to be issued by February 14, 2025. (Notice of Filing, at 2).

The matter was assigned to Chief Administrative Law Judge Erin M. Wirth, who entered the Initial Order on February 29, 2024.

Respondent filed its Answer to Complaint with Affirmative Defenses on March 7, 2024.

On March 22, 2024, the parties filed a Joint Status Report and Proposed Discovery Schedule ("JSR"). In the JSR, the parties proposed a case schedule, including discovery cutoff of August 12, 2024, and completion of briefing by November 9, 2024.

On March 25, 2024, Chief Judge Wirth issued a Scheduling Order that largely adopted the parties' proposed case schedule, with some adjustments.

³ Appendix A was compiled by the undersigned by combining the "Invoices Spreadsheet" (CX_000033-CX_000051), with the sea waybills (CX_000203-CX_000205, CX_000345-CX_001073), invoices from Respondent to Laufer Group International ("LGI") (CX_000264-CX_000279; CX_001074-CX_001185), and invoices from LGI to Supply Source (CX_000052-CX_000055; CX_000058; CX_000112-CX_000125; CX_000127-CX_000134; CX_000149-CX_000150; CX_000160-CX_000168).

On August 9, 2024, the parties filed a Joint Motion to Extend Discovery and Briefing Deadlines. In it, the parties requested that discovery cut-off be extended, as well as the briefing schedule. The parties noted that Supply Source's bankruptcy filing delayed the proceeding. In addition, the parties were working to resolve alleged discovery deficiencies. The proposed schedule amendments included extending discovery cut-off until October 22, 2024, and extending the completion of briefing until December 18, 2024.

On August 19, 2024, Chief Judge Wirth issued a Revised Scheduling Order that adopted the proposed schedule amendments.

On September 27, 2024, Supply Source filed an Unopposed Motion for Leave to File Amended Complaint ("Motion for Leave to Amend"). The Motion for Leave to Amend indicates that the proposed amended complaint will change the complainants from Impact Products, LLC and Safety Zone, LLC to TZ SSE Buyer, LLC. Supply Source filed for bankruptcy protection after the Complaint was filed. TZ SSE Buyer, LLC purchased Supply Source's assets, including the claims at issue in this litigation. In addition, the Motion for Leave to Amend indicates that the proposed amended complaint adds details, but did not add new allegations or charges. Among other things, the Motion for Leave to Amend included a copy of the Asset Purchase Agreement Between TZ SSE Buyer, LLC, Supply Source Enterprises, Inc., Impact Products LLC, and The Safety Zone, LLC ("Purchase Agreement"). (Motion for Leave to Amend, Ex. 2, at 62-148).⁴

On October 4, 2024, Chief Judge Wirth issued an Order Granting Motion for Leave to File Amended Complaint. The Office of the Secretary served the Amended Complaint on October 8, 2024.

On October 9, 2024, the parties filed a Joint Motion to Extend Briefing Deadlines that requested that the briefing schedule be extended in order to allow Respondent to answer the Amended Complaint, and Complainant to review the answer. On October 10, 2024, Chief Judge Wirth issued an Order Granting Motion to Extend Briefing Schedule.

On October 24, 2024, Respondent filed its Answer to Amended Complaint with Affirmative Defenses.

On November 14, 2024, the parties filed a Joint Motion to Extend Briefing Deadlines, stating, in short, that the parties were awaiting deposition transcripts. Chief Judge Wirth entered an Order Granting Second Motion to Extend Briefing Schedule on November 15, 2024.

Complainant filed its Opening Brief, along with its Proposed Findings of Fact ("CPFF"), Appendix ("CX") and Exhibits on December 9, 2024. On January 10, 2025, Respondent filed its Responses to CPFF ("RCPFF"), its Proposed Findings of Fact ("RPFF"), its Appendix and Exhibits ("RX"), as well as the Brief of Respondent. On January 24, 2025, Complainant filed its

⁴ The page reference for the Purchase Agreement is to pdf pages 62-148 of the exhibits to the Motion for Leave to Amend.

Reply Brief, its Responses to the RPFF (“CRPFF”), and its Reply Appendix (“CRX”) and Exhibits.

On February 3, 2025, this matter was reassigned to the undersigned.

On February 7, 2025, the deadline to issue the Initial Decision was extended to June 16, 2025.

C. The Parties’ Arguments

The Complainant filed Complainant TZ SSE Buyer, LLC’s Opening Brief on December 9, 2024 (the “Opening Brief”). In general, Complainant argues that Respondent imposed \$1,304,526 of detention, demurrage, and other charges on Complainant in violation of 46 U.S.C. §§ 41102(c) and 41104(a)(10). Regarding 46 U.S.C. § 41102(c), and citing 46 C.F.R. § 545.5, Complainant argues that detention and demurrage charges (“D&D”) charges must serve their intended purpose of acting as a financial incentive to promote freight fluidity. (Opening Brief, at 9-10). Complainant argues, based on this “incentive principle,” that Respondent’s D&D charges were unreasonable in five ways: 1) Respondent’s policies failed to incentivize cargo movement; 2) Respondent’s D&D policies were not transparent, accessible, or effective for dispute resolution; 3) Respondent’s billing practices were inadequate; 4) yard storage charges were Respondent’s obligation; and 5) Respondent failed to comply with the Ocean Shipping Reform Act of 2022. (Opening Brief, at 7-20). As for § 41104(a)(10), Complainant alleges that its intermediary, Laufer Group International (“LGI”), repeatedly asked Respondent to address systemic problems, such as severe congestion and equipment shortages, and requested extensions of free time, but Respondent unreasonably failed to engage. (Opening Brief, at 20-22). In addition, Complainant argues that Respondent failed to engage properly in discovery, and therefore Complainant should be entitled to several adverse inferences. (*Id.*, at 4-6, 21-22).

Respondent filed its Brief for Respondent, Yang Ming Marine Transport Corp. (the “Response”) on January 10, 2025. Respondent first argues that the fees at issue are outside the Commission’s jurisdiction because Respondent was responsible only for port-to-port transportation, whereas the fees here relate to land transportation. (Response, at 17-20). Second, Respondent argues that Complainant lacks evidence to demonstrate any unjust and unreasonable practices in violation of § 41102(c). (Response, at 21-34). Third, regarding the claim under § 41104(a)(10), Respondent argues that Complainant again fails to provide evidence showing a failure to negotiate. (*Id.*, at 35-37). In addition, Respondent argues that it responded appropriately to Complainant’s discovery requests. (*Id.*, at 25-29, 36-37). Respondent also attacks Complainant’s expert witness as being unqualified, and as being irrelevant and unreliable. (*Id.* at 33-34). Finally, Respondent argues that Complainant was not a direct purchaser. (*Id.* at 15-16, n.1).

Complainant filed Complainant TZ SSE Buyer, LLC’s Reply Brief (“Reply”) on January 24, 2025. Complainant argues that it may demonstrate its case through circumstantial evidence, and in any event, that the evidence was more than sufficient. (Reply, at 3-6, 17-42).

II. FINDINGS OF FACT

A. Findings of Fact Regarding Parties and Other Entities

1. Impact Products, LLC, is a Delaware limited liability company. (Purchase Agreement, at 67).
2. The Safety Zone, LLC, is a Connecticut limited liability company. (Purchase Agreement, at 67).
3. Supply Source Enterprises, Inc. is a Georgia corporation. (Purchase Agreement, at 67). Supply Source Enterprises, Inc., is the parent company of Impact Products, LLC, and The Safety Zone, LLC (collectively, “Sellers”). (CFPP, ¶ 9; *see also* Purchase Agreement, at 67).
4. Sellers filed a bankruptcy petition on or about May 21, 2024. (Purchase Agreement, at 67; Amended Complaint, ¶ 2; CPFF, ¶ 11).
5. TZ SSE, LLC is a Delaware limited liability company. (Purchase Agreement, at 67).
6. TZ SSE, LLC agreed to purchase Sellers’ assets, including all rights, claims or causes of action belonging to Sellers. (Purchase Agreement, at 80-82). The bankruptcy court approved of the Purchase Agreement on July 10, 2024. (Motion for Leave to Amend, Ex. 2, at 19-60).
7. Although Impact Products, LLC and The Safety Zone, LLC, were the original Complainants, TZ SSE, LLC was substituted as the Complainant after the asset purchase. (*See generally* Complaint; Amended Complaint, ¶ 2).
8. Respondent is an ocean carrier as defined in 46 U.S.C. § 40102(18) and is headquartered in Taiwan. (CFPP, ¶¶ 13-14; RCFPP, ¶¶ 13-14).

B. Findings of Facts Regarding NVOCCs

9. LGI is a New York corporation. (Amended Complaint, Ex. A). LGI is an NVOCC. (Amended Complaint, ¶ 14; Hallett Decl., CX_000003, ¶ 8; Hallett Dep., RX024, p. 160:8-11).
10. LGI assisted Supply Source in shipping containers, including negotiating agreements with carriers like Respondent to secure vessel space. (Hallett Decl., CX_000003, ¶¶ 8-11).
11. T.H.I. Logistics Co., Ltd. (“THI”) entered into an Ocean Service Contract dated May 1, 2020 (the “Service Contract”), with Respondent. (Service Contract, RX001-RX015). The Service Contract indicates that THI is an NVOCC. (Service Contract, RX002). The Service Contract does not have an expiration date. (*See generally* Service Contract, RX001-RX015). Among other things, the Service Contract states: “Carrier shall not be obligated to provide chassis for shipments designated for Port or Container Yard (CY)

delivery. Shipper must secure an appropriate chassis at its own expense prior to receiving containers (empty or loaded) at the Port or Container Yard (CY).” (Service Contract, RX007). The THI Service Contract also provides that: “[e]ither party may terminate this Contract at any time” if “[t]he other party makes an assignment for the benefit of creditors, in which event this Contract shall be deemed to be automatically terminated[.]” (Service Contract, RX010).

12. The record contains sample terms and conditions for Respondent’s bill of lading (“Terms and Conditions”). The Terms and Conditions indicate that they apply to sea waybills. Among other things, the Terms and Conditions indicate that the Carrier has a tariff, and that provisions of the tariff related to containers and vehicle demurrage are incorporated. (Terms and Conditions, RX016, at ¶ 2). The Terms and Conditions also state that a Merchant shall be liable for the demurrage. (*Id.*, at ¶ 19(4)). The Terms and Conditions define a “Merchant” to include the shipper, holder, consignee or receiver of the goods or any person owning or being entitled to possession of the goods or this bill and anyone acting on behalf of any such person.” (*Id.*, at ¶ 1(11)).
13. LGI operates under THI’s contract. (Anki Dep., Complainant’s Ex. 2-A, p. 55:14-22).

C. Findings of Fact Regarding the Invoice Spreadsheet, Invoices and Sea Waybills

14. Complainant asserts that Respondent imposed demurrage, detention, per diem and yard storage charges on drayage carriers. The drayage carriers passed the charges along to LGI. LGI then passed the charges through to Complainant. (Hallett Decl., CX_000004, ¶¶ 13, 14, 16).
15. Supply Source’s former employee signed a declaration stating that, based on a review of invoices from LGI, as well as correspondence, all charges originated from Respondent. (Hallett Decl., CX_000004-CX_000005, ¶ 18).
16. Supply Source’s former employee signed a declaration asserting that LGI disputed the charges Respondent imposed. (Hallett Decl., CX_000004, ¶ 14).
17. LGI and Supply Source entered an Assignment of Claims agreement whereby LGI assigned claims for Respondent’s alleged violations of the Shipping Act to Supply Source. (Assignment of Claims Agreement, CX_000008-CX_000012; Hallett Decl., CX_000004, ¶ 17).
18. Complainant asserts it paid \$1,304,526 in wrongful detention and demurrage charges during 2021 and 2022. (Amended Complaint, ¶¶ 14-15; Expert Report of John D. McCown (“McCown Report”), CX_000312-CX_000313, ¶ 77).
19. Complainant’s Appendix contains a spreadsheet that appears to be a compilation of invoices (the “Invoices Spreadsheet”). (CX_000033-CX_000051).
20. Reviewing the Invoices Spreadsheet carefully, it identifies 626 shipments relating to 625 different containers (container no. TCKU4334115 was apparently related to two separate

MBLs) that generated a total of 705 charges. Some containers generated multiple different types of charges. For example, container no. BEAU4330292 generated \$1,760 in demurrage charges, \$273 in per diem charges and \$500 in yard storage charges. The Invoices Spreadsheet shows 309 demurrage charges totaling \$955,796.50, one detention charge of \$400, 39 per diem charges totaling \$13,409.50 and 356 yard storage charges totaling \$334,920. The grand total of charges identified on the Invoices Spreadsheet is \$1,304,526. (*See generally* Invoices Spreadsheet).

21. The Invoices Spreadsheet is not dated, and is not authenticated by way of a declaration, affidavit, deposition, or any other testimony. (*See* Invoices Spreadsheet).
22. Although undated and the source of the information is not described, Respondent's expert report attaches an exhibit that appears to indicate that Respondent's internal records show that Respondent charged \$822,523 in demurrage and \$10,732 in per diem fees. (Vogt Decl., Ex. 13, at RX215).
23. Complainant submitted 216 invoices that Respondent issued to LGI. (CX_000264-CX_000279, CX_001074-CX_001185). There are several different sets of numbers on the invoices, including: Collectable Amount, B/L Level Total Collectable, B/L Total LFC, Container Level Collectable, and Container Level Total LFC. It is unclear what these amounts are, and the difference between them. Some of the numbers are also difficult to read because they are blurry. After reviewing the invoices to the best of my ability given the blurriness, it appears that, when aggregated, the total for each category is as follows: Collectable Amount, \$798,966; B/L Level Total Collectable, \$871,955; B/L Total LFC, \$812,046; Container Level Collectable, \$800,204; and Container Level Total LFC, \$810,213. The invoices all indicate that they reflect demurrage charges, and none indicate any "per diem" charges. LGI is consistently listed as the consignee. (CX_000264-CX_000279, CX_001074-CX_001185).
24. The 216 invoices Respondent issued to LGI identify a loading port and a discharging port in abbreviation form. (CX_000264-CX_000279, CX_001074-CX_001185). Most loading ports are identified as having CH, VN, LK, TW, HK and KR as the first two letters. The discharging ports are identified as having US for their first two letters. As for place of delivery and charge place, they are all identified as having US for their first two letters.⁵
25. Of the \$1,304,526 in charges reflected on the Invoices Spreadsheet, only \$827,755 of Complainant's alleged charges have a corresponding invoice from Respondent. (*Compare* CX_000264-CX_000279, CX_001074-CX_001185 *with* Invoices Spreadsheet). Of that amount, \$804,095 is demurrage, and \$19,660 is yard storage charges. The earliest last free date indicated on any of the invoices was September 10, 2021; the latest was January 6, 2023. (CX_001143; CX_001164).

⁵ I take official notice that the port codes are publicly available. (*See* 46 C.F.R. § 502.226; *see also* <https://www.sfmex.org/wp-content/uploads/2017/10/World-Port-Codes-and-Names.pdf> (last visited March 10, 2025)).

26. There are 172 sea waybills in the record. In general, they show that THI is the shipper, and LGI is the consignee, and that the delivery status is identified as “container yard.” All the sea waybills show that the port of origin was overseas, and that the port destination was in the United States. The places of delivery were identified as either New York, Houston, Norfolk, or Charleston. (CX_000203-CX_000205, CX_000345-CX_001073).
27. There are no invoices from Respondent, no sea waybills, and no invoices from LGI to Supply Source (discussed below) for 381 containers. (*See* Appendix A).

D. Finding of Facts Regarding Fees at Issue

28. Supply Source’s former employee signed a declaration stating that prior to 2021, Supply Source had not incurred demurrage, detention, per diem and yard storage charges of “such magnitude” (Hallett Decl., CX_000005, ¶ 21), presumably referring to the \$1,304,526 at issue in this matter.
29. Supply Source’s former employee signed a declaration stating that drayage companies used by LGI for Supply Source encountered significant logistical challenges, including severe port congestion, delays in container availability, limited trucking services, and equipment shortage. (Hallett Decl., CX_000005, ¶¶ 19-20).
30. The record contains an email chain dated January 4, 2021, through January 12, 2021, between an employee at LGI and an employee at a drayage provider regarding container no. TCNU2329916. In short, the employee for the drayage provider was unable to retrieve the container, which had a last free date of January 6, 2021, prior to January 12, 2021, due to congestion and unavailable chassis. (CX_000112-CX_000123).
31. The record contains invoice L01-131491-2, dated April 1, 2021, for \$225 “demurrage/store” charges, and \$40 in yard storage charges. It shows that the origin was in China, the “POD” was in the United States, and the destination was in a Detroit-suburb in Michigan. The invoice states: “Container is going in to demurrage due to trucker’s no availability. They will pre pull when they have availability.” (CX_000052; CX_000124-CX_000125). This invoice is reflected on the Invoices Spreadsheet.
32. The record contains an email chain dated February 10, 2021, between an employee of LGI, employees at a drayage provider and employees of Supply Source regarding the container associated with invoice L01-133234. An employee of the drayage provider states, in short, that there is a severe chassis shortage and severe congestion at the rails that affected the drayage provider’s ability to get containers “pulled and returned with in the free time[,]” and that “things are extremely tough right now, extremely.” The email chain contains photos of a long line of trucks and empty chassis storage racks. (CX_000103-CX_000106). Attached to this email are an arrival notice and LGI invoices to Supply Source for container no. TGBU5161756. (CX_000107-CX_000110). There is no charge associated with container no. TGBU5161756, which had a port of discharge of Vancouver, and destination of Chicago (CX_000107), on the Invoices Spreadsheet.
33. The record contains invoice L01-138442-3, dated September 2, 2021, for \$299.50 “demurrage/store” charges, and \$15 in additional service fees. (CX_000058;

CX_000149-CX_000150). This invoice is reflected on the Invoices Spreadsheet. There is also a sea waybill regarding this container. (CX_000345-CX_000347). But there is no corresponding email chain.

34. The record contains an email chain dated September 9, 2021, through September 23, 2021, between an employee of LGI and an employee of the drayage provider regarding container no. TGBU6789777. In short, the employee for the drayage provider indicated that the container was in the “stacks” at BSNF (presumably, a rail carrier) and that chassis are very hard to come by. (CX_000143-CX_000144).
35. The record contains an arrival release for container no. TGBU6789777, with an ETA of August 31, 2021, arrival date of September 12, 2021, last free day of September 13, 2021, and final destination of Chicago. (CX_0000056; CX_000145). The record also contains invoice L01-138820-101 for \$18,900 in ocean freight charges and fees, and indicating “arrival notice” with a date of August 24, 2021. (CX_0000057; CX_000146-CX_000148). There is no charge associated with container no. TGBU6789777 on the Invoices Spreadsheet
36. The record contains an email chain dated February 1, 2022, through February 4, 2022, between an employee of LGI and an employee of a drayage provider regarding container no. FBLU0251858. In short, the employee for the drayage provider indicated that although a driver was waiting, the driver was not being serviced, and incurred detention charges. (CX_000136-CX_000137).
37. The record contains an arrival release for container no. FBLU0251858, with an ETA of January 16, 2022, arrival date of February 1, 2022, last free day of February 2, 2022, with a point of discharge in Vancouver, and point of delivery in Chicago. (CX_000138). The record also contains invoice L01-141808-101 for \$22,935 in ocean freight charges and fees, and indicating “arrival notice” with a date of January 7, 2022. (CX_0000139). No charges related to this container are reflected on the Invoices Spreadsheet.
38. The record contains an email chain dated May 26, 2022, between an employee of Respondent, an employee of LGI, and an employee of the drayage provider regarding container no. YMLU8658455. The employee for Respondent advised that the last free day for the container was May 24, 2022. The employee for the drayage provider responded that there is a severe chassis deficit in Chicago. (CX_000170-CX_000172).
39. The record contains an arrival release regarding container no. YMLU8658455, with an ETA of May 6, 2022, arrival date of May 24, 2022, last free day of May 24, 2022, and a destination of Chicago. (CX_0000173). The record also contains invoice L01-146175-101 for \$17,045 in ocean freight charges and fees. (CX_000174). Although the record contains an email chain, as well as an invoice for ocean freight charges and fees related to container no. YMLU8658455, there are no invoices for demurrage related to container no. YMLU8658455 in the record, nor is that container listed on the Invoices Spreadsheet.
40. The record contains an email chain dated June 21, 2022, through June 22, 2022, between an employee of Respondent, an employee of LGI, and an employee of the drayage

provider regarding container no. FSCU5122145. In short, the employee for the Respondent advised that the container was past the last free day. Ultimately, the drayage provider responded that there was a chassis shortage and that the trucker would pick up the container as soon as possible. (CX_000152-CX_000153).

41. The record contains an arrival release regarding container no. FSCU5122145, with an ETA of May 20, 2022, arrival date of June 14, 2022, last free day of June 16, 2022, and a destination of Chicago. (CX_0000154). The record also contains invoice L01-146469-101 for \$17,545 in ocean freight charges and fees. (CX_000156). No charges related to this container are reflected on the Invoices Spreadsheet.
42. The record contains an email chain dated July 6, 2022, through July 7, 2022, between an employee at LGI and an employee at a drayage provider regarding container no. BMOU3150032. In short, the employee for LGI asked when the container would be picked up, and the employee for the drayage provider responded that it would as soon as a chassis was available. (CX_000127-CX_000128).
43. The record contains an arrival release renotification for container no. BMOU3150032, with an ETA of May 10, 2022, arrival date of June 14, 2022, and last free day of June 16, 2022. (CX_0000053; CX_000129). The container was loaded in China, discharged in Los Angeles, and delivered to Chicago. (CX_000053; CX_000129). The record contains invoice L01-146064-101 for \$20,045 in ocean freight charges and fees, and indicating “arrival notice” with a date of May 10, 2022. (CX_000054; CX_000130). The record also contains invoice L01-146064-3 for \$13,925 in “demurrage/store” charges and \$15 for an additional service fee. (CX_000055; CX_000133). This invoice is reflected on the Invoices Spreadsheet.
44. The record contains an email chain dated June 23, 2022, through July 8, 2022, between an employee at Respondent, an employee at LGI, and an employee at the drayage provider regarding container no. SEGU6841518. The employee for Respondent asks when the container will be picked up, and the employee for LGI responded that there is a big problem with chassis, and that the trucker will pick up when the trucker has a chassis. An email in the chain from Respondent’s employee dated July 1, 2022, shows \$2,925 in demurrage charges. An email in the chain from Respondent’s employee dated July 8, 2022, is a reminder regarding the container. (CX_000160-CX_000164).
45. The record contains an arrival release for container no. SEGU6841518, with an ETA of May 15, 2022, arrival date of June 19, 2022, last free day of June 21, 2022, and a destination of Chicago. (CX_0000165). The record also contains invoice L01-145253-101 for \$21,845 in ocean freight charges and fees. (CX_000166). There are no invoices regarding demurrage for container no. SEGU6841518 in the record. The Invoices Spreadsheet shows \$14,925 in demurrage charges regarding this container.
46. A witness for Respondent testified:

Q. So – So you don't – you don't have any general knowledge that during the pandemic there were – there was an increase in detention or demurrage

charges just generally along the industry? I'm not saying about a specific charge or any – any of – I'm not – I'm not touching that yet.

A. Yeah. Again, the detention I do not know; however, I do know that demurrage has increased.

(Anki Dep., CX_000018, p. 32:7-14).

47. A witness for Respondent testified:

Q. Yeah. So we mentioned before that Yang Ming does not get involved with yard storage fees; is that right?

A. Yes, that is correct. We don't have yards. We don't have yard storage. We don't get involved in yard storage.

Q. Right. So your testimony is that Yang Ming does not have yards or, you know, they don't get involved with storage because essentially there – they don't have yards, right?

A. We don't have yards. We don't have any kind of contract with any yard to deal with any yards. So --

Q. Got it.

A. So do you -- no dealing with yards.

(Anki Dep., CX_000019, pp. 38:14-39:3).

48. A witness for Respondent testified:

Q. Yeah. I just meant to say: Are you aware based on your review of the Complaint that the Complainant is alleging that Yang Ming charged Laufer a total demurrage, detention, per diem, and yard storage fees in the amount of \$1,304,526 during the relevant period?

A. Okay. I don't think Yang Ming would be charging yard storage. I'm not sure where that is being claimed at, but demurrage, detention, per diem would fall under Yang Ming's service but not yard storage. So I'm --

(Anki Dep., RX027, p. 83:3-13).

49. A witness for Respondent testified:

Q. Okay. Can you describe how port congestion impacted Yang Ming's operations during this time, during the relevant period?

A. We had vessels sitting idle in -- in -- in the ocean, waiting for them to be processed.

Q. And how did this affect just in general your whole operations? Can you briefly give me a description of everything that was affected because of this?

A. Our operation at the port?

Q. That's right.

A. Like I said, it -- our vessels could not be processed. You know, you're losing money, sitting idle at the port and -- not at the port -- in the middle of ocean, waiting for labor to be available. In addition, it's a safety issue, vessels sitting, not moving. It's a safety issue for a vessel itself.

(Anki Dep., CX_000021, p. 93:7-22).

50. A witness for Respondent testified:

Q. Okay. Okay. And do you know whether drayage companies or these truckers that were picking up or dropping off containers during this time -- were they having any issues accessing the terminal because of these port congestion issues during this -- during the relevant period?

A. You're talking about trucking companies?

Q. Yeah, drayage companies, trucking companies that, you know, go and pick up the containers, drop them off.

A. Yeah. They stayed in line maybe a little bit longer than the usual.

(Anki Dep., CX_000022, p. 96:1-12).

51. A witness for Respondent testified:

Q. . . . not. But you're saying they're not. I'm just saying that -- whether -- During this relevant period and your industry knowledge, were you aware that there was a chassis shortage during the COVID-19 pandemic and relevant period?

A. Yes, with the limited information that some truckers shared some -- to some of our employees, yes. The market had some chassis shortage.

(Anki Dep., CX_000023, p. 102:1-8).⁶

52. A witness for Respondent testified:

⁶ The beginning of the question is not in the record.

Q. And how do – what’s – what’s the policy for disputing a charge? Does Yang Ming have a policy for disputing a charge, demurrage charge, for example?

A. Yeah. A client can dispute, but it's all reviewed. The facts have to be – you know, backup provided. There’s – You know, all that is done, and as necessary, actions are taken accordingly.

Q. And –

A. And deliver all the backup, or necessary proof must be given to them.

Q. Is there a method to dispute a charge? How would a client dispute a charge? What would be the steps that they need to do?

A. They contact their salespeople. They can contact customer service, and they can do all that.

Q. So there's no specific department that would essentially have to reach out to Yang Ming and dispute the charge?

A. The sales department can receive it.

Q. The sales department?

A. The customer service department, we can receive it, and we process it and pass it onto the department that reviews.

Q. And what – what – what is that department called, the department that reviews disputes?

A. It’s – It’s at headquarters.

Q. Headquarters. And do you know what they take into account when a party disputes charges?

A. They have – I don't have their SOPs or things that they take into account. I really don't.

(Anki Dep., CX_000024, pp. 210:6-211:11).

E. Findings of Fact Regarding Complainant’s Expert Report

53. Complainant retained John D. McCown to provide expert testimony. (*See* Expert Report of John D. McCown (“McCown Report”), at CX_000281-CX_000324).
54. The McCown Report opined that Respondent “engaged in demurrage and detention billing practices that aggressively and relentlessly charged consignees of cargo in a manner that was more notable compared to the overall industry, and such practices

contributed to its more accelerated improvement in financial performance relative to the industry.” (McCown Report, at CX_000310). The Report also opined that the demurrage charged to Supply Source was even higher still. (*Id.*).

55. The McCown Report opined that any attempt by Respondent “to claim that damages should only be assessed on an invoice-by-invoice basis should be rejected as disingenuous.” (McCown Report, at CX_000317). The McCown Report continues, stating that Respondent “is well aware that between time and the typical way such invoices are processed that it is virtually impossible to reconstruct specific details related to any invoice and would be inefficient even if such information was obtainable.” (*Id.*). Using an analogy, the McCown Report states: “A state trooper can issue a speeding ticket to a car that goes 10 miles from point A to point B in 5 minutes without ever witnessing when or where the car was speeding. The actual data demonstrates that it must have occurred,” just as the data in this case shows Respondent acted outside industry norms. (*Id.*).
56. Respondent submitted a rebuttal expert report. (RX053-RX216).⁷

III. ANALYSIS AND CONCLUSIONS OF LAW

A. Burden of Proof

To prevail in a proceeding brought to enforce the Shipping Act, “a complainant has the burden of proving by a preponderance of the evidence that the respondent violated the Act. In general, the burden of proof is on the complainant.” (*Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority of New York and New Jersey*, 1 F.M.C.2d 264, Dkt. No. 17-07, 2019 WL 1376529, at *13 (ALJ Mar. 25, 2019) (“*PANYNJ*”); *see also* 5 U.S.C. § 556(d)). “It is appropriate to draw inferences from certain facts when direct evidence is not available, and circumstantial evidence alone may even be sufficient; however, such findings may not be drawn from mere speculation.” (*OJ Commerce, LLC v. Hamburg Sudamerikanische Dampfschiffahrts-Gesellschaft A/S & Co. KG & Hamburg Sud N. Am., Inc.*, Dkt. No. 21-11, 2023 WL 3969857, *20 (ALJ Jun. 7, 2023) (*aff’d* Aug. 27, 2024)).

B. Jurisdiction

Of the 626 container shipments with related claims, I find that the Commission has jurisdiction to hear Complainant’s claims related to 245 container shipments. I find that the Complainant has not carried its burden of demonstrating that the Commission has jurisdiction regarding the claims related to the remaining 381 container shipments.

The Respondent argues that the Commission does not have jurisdiction to hear this case because Respondent was required only to transport the containers at issue to a container yard, whereas the charges at issue apparently are related to Supply Source’s inability to recover containers after Respondent delivered them. (Response, at 17-20). For support, Respondent

⁷ The expert reports are not discussed in further detail because it is unnecessary to do so in this case.

points to sample sea waybills, showing “Container Yard (CY)[.]” (*Id.*, at 17; CX_000203-CX_000205; *see also* CX_000346-CX_001073). Respondent also argues that the Service Contract indicates that the shipper must secure a chassis at its own expense. (Service Contract, RX007). Respondent argues that this is consistent with case law, which generally does not hold an ocean carrier liable for events that occur after the cargo is discharged. (Response, at 17-19 (*citing, e.g., Ins. Co. of N. Am. v. S/S American Argosy*, 732 F.2d 299 (2d Cir. 1984) (reversing a judgment against the carrier where the damage at issue occurred after the cargo reached its destination))). Respondent also argues that the Commission’s jurisdiction generally does not cover overland transportation. (Response, at 19-20 (*citing, e.g., DHX, Inc. v. Surface Transp. Bd.*, 501 F.3d 1080 (9th Cir. 2007))).

I do not agree with Respondent’s argument. As an initial matter, the Shipping Act provides that: “A person may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part. . . .” (46 U.S.C. § 41301(a)). “Pursuant to this provision, the Commission has jurisdiction over a complaint alleging that a respondent committed an act prohibited by the Shipping Act.” (*Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, Dkt. No. 21-09, 2022 WL 1239377 (ALJ Apr. 22, 2022) (settlement approved on appeal) (“*Hapag Lloyd, A.G.*”). Here, the Verified Amended Complaint alleges violations of the Shipping Act by Respondent.

As for Respondent’s specific argument that a carrier is generally not liable for losses after it discharges cargo, or that FMC jurisdiction generally does not extend to overland transportation, those arguments are undermined by the fact that Respondent admitted to imposing over \$830,000 in charges in this case, apparently for LGI’s belated pickup of containers. (Vogt Decl., Ex. 13, at RX215). Indeed, there is email traffic in the record of Respondent’s employee reminding LGI’s employee that a container needed to be picked up, and LGI eventually being invoiced for the late pickup. (CX_000152-CX_000153; CX_000160-CX_000164; CX_000170-CX_000172). Moreover, the Commission’s governing statutes and regulations presuppose that the Commission has jurisdiction to consider demurrage charges. (*See, e.g.,* 46 U.S.C. § 41102(c); 46 C.F.R. § 545.5). Therefore, Respondent’s arguments regarding jurisdiction are not persuasive.

I do find, however, that there is a jurisdictional problem as to the claims related to the 381 container shipments for which there is no evidence that the container was transported overseas from a foreign port to a port in the United States. In general, the Commission has jurisdiction over certain regulated entities, including ocean common carriers (“OCC”). (*See, e.g.,* 46 U.S.C. §§ 40102(7), 41102(c)). A common carrier is:

a person that—

- (i) holds itself out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation;
- (ii) assumes responsibility for the transportation from the port or point of receipt to the port or point of destination; and

(iii) uses, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country. . . .

(46 U.S.C. §§ 40102(7)). In general, there must be a link between the respondent's regulated status and the conduct that allegedly violates the Shipping Act. (*Auction Block Co. v. Fed. Mar. Comm'n*, 606 Fed. App'x. 347, 347-48 (9th Cir., 2015); see also *Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, Dkt. No. 15-04, 2019 WL 4734299, at *12 (FMC July 16, 2019) (remanding proceeding) ("The central question in this case is whether, and when, Marine Transport was a regulated entity – common carrier, marine terminal operator, or OTI – with respect to the conduct at issue.")).

Here, as for the claims related to the 245 container shipments for which there is a sea waybill or invoice, the Commission has jurisdiction. There is no question that Respondent meets the first two definitions of "common carrier." Respondent essentially admits that it is a common carrier. (CFPP, ¶¶ 13-14; RCFPP, ¶¶ 13-14). A party, however, must operate a vessel between a port in the United States and a port in a foreign country. Here, there are 245 container shipments for which there was either a sea waybill, or an invoice, or both. The sea waybills and the invoices both show that the containers were transported from a port overseas, such as a port in China or Vietnam, to a port of destination in the United States, such as Los Angeles, CA, or New York, NY. (CX_000052-CX_000055; CX_000058; CX_000108-CX_000110, CX_000124-CX_000125, CX_000130-CX_000134, CX_000139-CX000140; CX_000146-CX_000150; CX_000155-CX_000158; CX_000166-CX_000168; CX_000174-CX_000176; CX_000203-CX_000205; CX_000264-CX_000279; CX_000345-CX_001185).

Moreover, there is a clear link between Respondent's status as a common carrier regarding the 245 container shipments for which there is a sea waybill and/or invoice and the fees at issue. Respondent essentially admits that it charged \$822,523 in demurrage and \$10,732 in per diem fees. (Vogt Decl., Ex. 13, at RX215). Respondent's witness testified that Respondent charges demurrage. (Anki Dep., RX027, p. 83:3-13). In fact, it appears that the demurrage at issue was imposed on LGI per Respondent's tariff; Respondent's Terms and Conditions from its bill of lading indicates that Respondent had a tariff, and that container and vehicle demurrage from the tariff was incorporated into the Terms and Conditions. (Terms and Conditions, RX016, at ¶ 2).

As to the claims related to container shipments for which there is neither a sea waybill nor an invoice, Complainant has not carried its burden of proving that the Commission has jurisdiction. There is no evidence in the record allowing me find, for example, that container no. BMOU3151379 was transported between a port in a foreign country and a port in the United States. The same is true for container no. BEAU2360209, as well as any other container for which there is neither a sea waybill nor an invoice. Indeed, there is some evidence in the record that at least some container shipments were routed through Vancouver, Canada. (CX_000107; CX_000138). It is appropriate to dismiss a case where a container was shipped to a Canadian port. For instance, in *Webtrans Logistics, Inc. v. Hapag-Lloyd (America) LLC*, Dkt. No. 2013(F) (ALJ Oct. 8, 2024⁸) (notice not to review Nov. 8, 2024), the ALJ granted a motion to dismiss a

⁸ Available at [www2.fmc.gov/readingroom/docs/2013\(F\)/2013\(F\) Initial Decision Granting Dismissal.pdf/](http://www2.fmc.gov/readingroom/docs/2013(F)/2013(F) Initial Decision Granting Dismissal.pdf/) (last visited March 17, 2025).

claim arising under § 41102(c) for lack of jurisdiction because the definition of “common carrier” under § 40102(7) was not satisfied where the container at issue was shipped from a port in Vietnam to a port in Canada.

In this case, because the burden of proof is on the Complainant (*see* 5 U.S.C. § 556(d)), and because of a lack of evidence, I must dismiss the claims for which there is no evidence that the related container shipment traveled from a port in a foreign country to a port in the United States. Accordingly, I **DISMISS** all claims for lack of jurisdiction for which there is no sea waybill or invoice demonstrating jurisdiction. Attached hereto is Appendix A, which identifies all the containers for which there is a sea waybill or invoice in the record, and the ones for which there is neither a sea waybill nor an invoice in the record.

C. Alleged Violation of 46 U.S.C. § 41102(c)

Complainant alleges that Respondent violated § 41102(c) in several ways, which will be discussed below.

1. Elements of a Claim Under 46 U.S.C. § 41102(c)

Section 41102(c) of the Shipping Act provides that an OCC “may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling storing or delivering property.” (46 U.S.C. § 41102(c)).

By regulation, the Commission identified the following five elements of a claim under § 41102(c):

(a) the respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) the claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis; (c) the practice or regulation relates to or is connected with receiving, handling, storing or delivering property; (d) the practice or regulation is unjust or unreasonable; and (e) the practice proximately caused the claimed loss.

(46 C.F.R. § 545.4).

a. Respondent is an Ocean Common Carrier

As discussed above, there is no question Respondent is an OCC as to the shipments for which there are sea waybills and/or invoices. In fact, Respondent admitted it is an OCC. (CFPP, ¶¶ 13-14; RCFPP, ¶¶ 13-14). As also discussed, regarding shipments for which there was neither a sea waybill nor an invoice, Complainant did not carry its burden of showing that Respondent acted as a common carrier because there is no evidence that the shipments at issue went from a foreign port to a port in the United States. Therefore, the first element of a claim under § 41102(c) is met as to the shipments for which there is a sea waybill or an invoice. As noted, those shipments are identified in Appendix A.

b. Normal, Customary, and Continuing Basis

The second element of a claim under § 41102(c) is that the claimed acts occurred on a normal, customary and continuous basis. I find that Complainant has carried its burden of showing that it is more likely than not that this element is satisfied regarding demurrage, detention and per diem charges. I also find that Complainant has not carried its burden of showing that it is more likely than not that this element is satisfied regarding yard storage charges.

In *TCW, Inc. v. Evergreen Shipping Agency*, the Commission affirmed the SCO's conclusion that the second element of a § 41102(c) claim was satisfied, even though there was only three days' worth of charges at issue, because the detention charge was imposed pursuant to a contractual term. (See *TCW, Inc. v. Evergreen Shipping Agency*, Dkt. No. 1966(I), 2022 WL 18068977, at *4-5 (FMC Dec. 29, 2022) (*vacated and remanded on other grounds sub nom. Evergreen Shipping Agency v. FMC*, 106 F.4th 1113 (D.C. Cir. 2024) ("*TCW I*").

Here, Respondent admits to that its internal records show that it charged \$822,523 in demurrage fees. (Vogt Decl., Ex. 13, RX215). It appears from Respondent's Terms and Conditions from its bill of lading that Respondent had a tariff, and that container and vehicle demurrage from the tariff was incorporated into the Terms and Conditions. (Terms and Conditions, RX016, at ¶ 2). Moreover, the Terms and Conditions make the Merchant responsible for the demurrage. (*Id.*, at ¶ 19(4)). The Terms and Conditions define a "Merchant" to include the shipper, holder, consignee or receiver of the goods or any person owning or being entitled to possession of the goods or this bill and anyone acting on behalf of any such person." (*Id.*, at ¶ 1(11)). Here, LGI is consistently listed as the consignee on the sea waybills. (CX_000346-CX_001073). Therefore, it appears that the demurrage at issue was imposed on LGI per Respondent's tariff. Accordingly, I find that it is more likely than not that the demurrage charges were imposed on a normal, customary and continuing basis.

Regarding detention charges, there was only one alleged charge. (Invoices Spreadsheet, Reference No. L01-149531). That there was only one alleged charge alone does not preclude the finding that the charge was imposed on a normal, customary and continuing basis. As discussed, in *TCW I*, the Commission affirmed the initial decision that concluded, in part, that three days' worth of detention charges could constitute a normal, customary and continuing practice. (*TCW I*, 2022 WL 18068977, at *4-5). Further, Respondent's witness testified that Respondent will impose detention charges. (Anki Dep., RX027, p. 83:3-13). Therefore, I am satisfied that it is more likely than not that Respondent imposed the detention charge pursuant to a practice.

As for per diem charges, it is unclear why Respondent imposed per diem charges. Respondent, again, essentially admits that it imposed \$10,732 in per diem fees. (Vogt Decl., Ex. 13, at RX215). Complainant alleges that there are 39 per diem charges at issue, totalling \$13,409.50. It appears more likely than not that there were several per diem charges assessed by Respondent against LGI, as most of the per diem charges alleged to be at issue are for less than \$1,000. (See generally Invoices Spreadsheet). Moreover, Respondent's witness testifies that Respondent charges per diem. (Anki Dep., RX027, p. 83:3-13). Therefore, it is more likely than not that Respondent imposes per diem fees on a normal, customary and continuing basis.

As for yard storage fees, I find that Complainant has not carried its burden of demonstrating that Respondent imposes such charges on a normal, customary or continuing basis. Complainant asserts – via a declaration from an employee who claims that he reviewed LGI’s invoices – that all the charges, including yard storage charges, originated from Respondent. (Hallett Decl., CX_000004-CX_000006, at ¶ 18). But, Complainant provided no other evidence that Respondent billed any yard storage charges to Complainant, or to anyone. For example, Complainant produced 216 invoices from Respondent. (CX_000264-CX_000279; CX_001074-CX_001185). These invoices, however, all indicate that they were for demurrage, and none show any yard storage charges. (*Id.*). To the extent that there are invoices in the record from LGI that show yard storage fees, there is no indication that the yard storage fees came from Respondent. (*See* CX_000052; CX_000124-CX_000125). In fact, one email makes reference to a container being in a rail carrier’s stacks. (CX_000143-CX_000144). Moreover, Respondent’s witness testified that Respondent was not responsible for yard storage fees. (Anki Dep., CX_000018, p. 32:7-14; CX_000019, pp. 38:14-39:3; RX027, p. 83:3-13). In light of this evidence, I am not persuaded that Complainant has carried its burden of demonstrating that Respondent imposed charges yard storage fees on a normal, customary and continuing basis.

Complainant argues that Respondent should be responsible for yard storage fees anyway. Complainant argues that Respondent was a common carrier and had an obligation to ensure that the cargo was available for pickup. Complainant also argues that Safety Source had no contractual relationship with rail yards. Therefore, Respondent was responsible for yard storage charges. (Opening Brief, at 15-17; Reply, at 33). This argument is not persuasive. It is unclear what Respondent allegedly did to make containers unavailable for pickup, or, conversely, what Respondent should have done, but failed to do. Moreover, Complainant points to no evidence to support this theory other than the existence of yard storage charges themselves.

For these reasons, I find that the second element of a claim under § 41102(c) is satisfied regarding demurrage, detention and per diem charges, but not satisfied for yard storage charges. As for Complainant’s claims regarding yard storage charges, those charges fail because there is no evidence that such charges were imposed on Complainant by Respondent on a normal, customary and continuing basis. Therefore, all of Complainant’s claims regarding yard storage charges are **DENIED**.

c. Related to Property

The third element is that the practice or policy at issue has to relate to or be connected with the receiving, handling, storing or delivering of the property at issue. I find that this element is satisfied. Complainant alleges that all of the charges at issue related to the transportation of containers. Respondent identifies this third element, but otherwise does not argue that Complainant failed to satisfy this element. (*See* Response, at 21). The LGI invoices in the record all appear to relate to the transportation of containers. (*See* CX_000052-CX_000055; CX_000058; CX_000108-CX_000110, CX_000124-CX_000125, CX_000130-CX_000134, CX_000139-CX000140; CX_000146-CX_000150; CX_000155-CX_000158; CX_000166-CX_000168; CX_000174-CX_000176). Therefore, I find that the third element of a claim under § 41102(c) is satisfied.

d. The Practice or Regulation is Unjust or Unreasonable

Complainant argues that the \$1,304,526 in demurrage, detention, per diem and yard storage fees that Respondent charged were unjust and unreasonable. For the reasons discussed below, I find that Complainant has not demonstrated that the practices at issue were unjust or unreasonable, except for the demurrage charges related to container no. TCNU2329916 from January 7, 2021, through January 12, 2021, and container no. SEGU6841518 for June 23, 2022.

i. Background Regarding Interpretive Rule

The Commission promulgated an interpretive rule applying “to practices and regulations relating to demurrage and detention for containerized cargo.” (46 C.F.R. § 545.5(a)). In general, “[i]n assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended primary purposes as financial incentives to promote freight fluidity.” (46 C.F.R. § 545.5(c)(1)). Regarding demurrage charges, “[t]he Commission may consider in the reasonableness analysis the extent to which demurrage practices and regulations relate demurrage or free time to cargo availability for retrieval.” (46 C.F.R. § 545.5(c)(2)(i)). In addition, the Commission may consider “whether and how regulated entities provide notice to cargo interests that cargo is available for retrieval.” (46 C.F.R. § 545.5(c)(2)(iii)). As for detention charges, the Commission’s interpretive rule provides that: “Absent extenuating circumstances, practices and regulations that provide for imposition of detention when it does not serve its incentivizing purposes, such as when empty containers cannot be returned, are likely to be found unreasonable.” (46 C.F.R. § 545.5(c)(2)(ii)). The rule continues, stating that:

(d) *Demurrage and detention policies.* The Commission may consider in the reasonableness analysis the existence, accessibility, content, and clarity of policies implementing demurrage and detention practices and regulations, including dispute resolution policies and practices and regulations regarding demurrage and detention billing. In assessing dispute resolution policies, the Commission may further consider the extent to which they contain information about points of contact, timeframes, and corroboration requirements.

(e) *Transparent terminology.* The Commission may consider in the reasonableness analysis the extent to which regulated entities have clearly defined the terms used in demurrage and detention practices and regulations, the accessibility of definitions, and the extent to which the definitions differ from how the terms are used in other contexts.

(46 C.F.R. §§ 545.5(d)&(e); *see also Bakerly, LLC v. SeaFrigo USA, Inc.*, Dkt. No. 22-17, 2024 WL 4678461, at *21 (FMC Oct. 30, 2024)). The Final Rule promulgating 545.5 states that each case would be decided on its own facts. (*Interpretive Rule on Demurrage and Detention Under the Shipping Act*, 85 FED. REG. 29638, 29642).

The Commission recently issued a decision discussing the interpretive rule in *TCW, Inc. v. Evergreen Shipping Agency (America) Corp.*, Dkt. No. 1966(I), 2025 WL 516256 (FMC Feb. 13, 2025) (“*TCW II*”). In that case, a trucker was charged detention for failing to return a chassis

and container for several days after its free days expired. (*TCW II*, 2025 WL 516256, at *2). The trucker challenged the detention charges imposed while the port was closed for the Memorial Day weekend. (*Id.*). The Commission originally affirmed the initial decision of the small claims officer (“SCO”) finding that the detention charges imposed while the port was closed to be unreasonable as the equipment could not be returned during those days. (*Id.*, at *3 (citing *TCW v. Evergreen Shipping Agency (America) Corp.*, Dkt. No. 1966(I), 2022 WL 18068977 (FMC Dec. 29, 2022) (“*TCW I*”))). The D.C. Circuit vacated and remanded the Commission’s decision, reasoning that the Commission did not analyze adequately the incentivizing effect of the detention charge at issue and did not respond to Respondent’s arguments. (*TCW II*, 2025 WL 516256, at *3 (citing *Evergreen Shipping Agency (America) Corp. v. Fed. Mar. Comm’n*, 106 F.4th 1113 (D.C. Cir. 2024))).

On remand, the Commission again affirmed the SCO’s initial decision. (*TCW II*, 2025 WL 516256, at *4-11). The Commission emphasized that it would assess the reasonableness of the detention charge at issue by balancing: “how a particular charge fits within the incentive principle to further the primary purpose of promoting freight fluidity alongside other arguments and extenuating circumstances raised by the parties to determine if they are relevant to assessing reasonableness and if so, whether they outweigh the finding under the incentive principle.” (*Id.* at *4). The Commission noted, among other things, that while detention charged over a weekend could incentive return of a container prior to the weekend, that does not necessarily promote freight fluidity. (*Id.* at *5-6). Moreover, allowing detention to accrue over a weekend disincentivizes regulated entities from improving freight fluidity. (*Id.*, at *6-7). As for the specific facts of the case, the Commission also noted that it was not possible for the trucker to return the cargo to the port before the port was closed for the Memorial Day weekend. (*Id.* at *6-7). The Commission discussed the counterarguments for why the detention was reasonable. (*Id.* at *8-9). For example, the Commission noted that some facts pointed to a finding of reasonableness, such as the respondent provided a generous amount of free time; the relevant governing agreement had a dispute resolution provision; and the port closure was known in advance. (*Id.*). Nevertheless, none of these facts were dispositive. (*Id.*). The Commission concluded, based on the specific facts, that the charges were not reasonable because the trucker was unable to get the container back to the port before the holiday weekend. (*Id.* at *9).

ii. Application of Interpretive Rule to This Case

Complainant makes several arguments regarding how the fees at issue in this case are unjust and unreasonable. First, Respondent was aware of systemic problems – like severe congestion, chassis shortages and rail yard delays – that made it very difficult for Safety Source to retrieve containers, yet Respondent imposed punitive fees and profited handsomely. (Opening Brief, at 11-12; *see also* McCown Report, at CX_000310). Second, Respondent’s policies lacked transparency, accessibility and effective dispute resolution mechanisms. (Opening Brief, at 13-14). Third, Respondent’s invoices provided no explanation for the charges at issue. (Opening Brief, at 14-15). Fourth, yard storage charges remain Respondent’s responsibility. (Opening Brief, at 15-16). And finally, Respondent violated OSRA 2022. (Opening Brief, at 17).

As noted, Complainant bears the burden of proof. (*PANYNJ*, 2019 WL 1376529, at *13; *see also* 5 U.S.C. § 556(d)). I may draw inferences, and direct evidence is not necessary for a complainant to prevail. (*OJ Commerce, LLC*, 2023 WL 3969857, at *20). But, findings may not

be drawn from mere speculation. (*Id.*). Moreover, also as noted, whether a D&D charge is reasonable is a fact-specific inquiry that balances: “how a particular charge fits within the incentive principle to further the primary purpose of promoting freight fluidity” with other arguments and circumstances “raised by the parties to determine if they are relevant to assessing reasonableness and if so, whether they outweigh the finding under the incentive principle.” (*TCW II*, 2025 WL 516256, at *4-11).

Due to the fact-specific nature of whether D&D charges are just and reasonable, it is appropriate to review the charges related to each individual container in order to determine whether a charge was unjust or unreasonable. This is precisely what Chief Judge Wirth did in *Hapag-Lloyd A.G.*, which was another case involving allegedly unjust and unreasonable D&D charges, and which was decided before the present case was commenced. There, the Commission issued an Order of Investigation and Hearing against the respondents to determine whether the respondents violated § 41102(c) for: 1) assessing detention in relation to eleven containers where return appointments were unavailable during free time, and, 2) failing to waive detention when presented with evidence of unavailable appointments. (*Hapag-Lloyd, A.G.*, 2022 WL 1239377 at *1). In the Initial Decision, the ALJ determined while there were no specific evidentiary requirements, she reviewed the evidence regarding each individual container. (*Id.* at *26-30). Among other things, the ALJ noted that the trucking company that worked at the relevant port provided evidence that it attempted to make appointments to return containers, that it took screenshots of the appointment calendar if appointments were unavailable, that it used evidence from a website that gathered appointment data, and that it emailed Respondents regarding unavailability. (*Id.* at *21, *27). The ALJ concluded that where documentation was absent, she was unable to make findings. (*Id.* at *27). For example, for one particular container, the last free day was June 8, and there was evidence in the record that appointments were full on June 11, and June 14-16; thus, the ALJ found that the Respondents charged detention for four days when the container was unable to be returned. (*Id.*, at *28). The ALJ also concluded that where evidence showed that appointments to return containers were unavailable, detention was inappropriate: “Therefore, [respondents] charged detention for fourteen days when there is evidence that sufficient appointments were not available. This policy and practice is unreasonable because no amount of detention could have incentivized the return of the containers on those fourteen days.” (*Id.*, at *30).

Applying the fact-specific, container-by-container analysis used in *Hapag-Lloyd, A.G.*, I find that Complainant does not carry its burden of showing that the charges at issue are unjust or unreasonable as to almost every claim related to the 245 container shipments over which the Commission has jurisdiction.⁹ Complainant’s evidence of widespread congestion, including witness testimony (Anki Dep., CX_000021, pp. 93:7-22; CX_000022, 96:1-12; CX_000023, 102:1-8; Hallett Decl., CX_000005, ¶¶ 19-20, 22), exemplar email chains describing congestion

⁹ As noted above, I find that the Complainant did not carry its burden of demonstrating that the Commission had jurisdiction over the charges related to the 381 containers. Even if the Commission had jurisdiction over those charges, Complainant would have the same problems discussed in the main text – namely, there is no specific evidence as to any one of those charges.

and equipment shortages¹⁰ (CX_000103-CX_000106; CX_000112-CX_000123; CX_000127-CX_000128; CX_000136-CX_000137; CX_000142-CX_000144; CX_000152-CX_000153; CX_000160-CX_000164; CX_000170-CX_000172), and testimony that Supply Source never experienced charges of this magnitude before 2021-2022 (Hallett Decl., CX_000005, ¶ 21), is not persuasive. Such evidence does not satisfy Complainant's burden of showing that the \$1,200 demurrage charge related to container no. TGBU5546690 was unjust or unreasonable. (CX_0001154). The same is true for the \$460 demurrage charge related to container no. YMLU8622112. (CX_0001170). In *Hapag-Lloyd, A.G.*, the ALJ was unable to make any factual findings where specific evidence did not exist. (*Hapag-Lloyd, A.G.*, 2022 WL 1239377, at *27). For example, even where there was evidence that a container could not be returned on June 11 and June 14, the ALJ made no findings regarding June 12 and June 13. (*Id.* at *27). Moreover, in *Hapag-Lloyd, A.G.*, only after Chief Judge Wirth identified specific evidence that a container could not be returned on a given day, such as in the form of a screenshot or email, was she able to conclude that the container could not be returned. (*Id.*, at *30; see accord *Simple Forwarding Inc. v. China United Lines Ltd.*, Dkt. No. 2010(F) (ALJ Feb. 6, 2025) (notice not to review March 11, 2025))¹¹ (finding that a detention charge was unjust and unreasonable only until the claimant had an opportunity to return the container at issue)). Here, there is nothing specific in the record regarding the \$1,200 demurrage charge related to container no. TGBU5546690 to show that it was unjust or unreasonable.

Complainant's expert opines that an analysis based on specific details (conducted on an "invoice-by-invoice" basis) is inappropriate. (McCown Report, CX_000317, ¶ 91). The expert argues that given the way the invoices are processed, it is difficult to reconstruct specific details. Instead, the expert argues that the unreasonableness of the charges can be proved by means of inferences based on circumstantial evidence. He gives the example of a police officer who can know a driver is speeding based on the amount of time the driver takes to go from one point on the road to another, even if the police officer never actually sees the driver. (*Id.*). I appreciate this point, but I am not persuaded by it. Before inferences can be drawn, there must be sufficient circumstantial evidence to permit the inferences to be drawn. (*OJ Commerce, LLC*, 2023 WL 3969857, at *20). Here, general facts, such as congestion and equipment shortages, or substantially increased profits by Respondent in 2021 and 2022, may be analogous to knowing the two points on the road. But, without specific facts, such as knowing that Complainant was unable to pick up a particular container through no fault of its own – which the Complainant has

¹⁰ The eight email chains in the record are not persuasive exemplars. Seven of the eight email chains relate to congestion or equipment shortages in Chicago. (CX_000103-CX_000106; CX_000127-CX_000128; CX_000136-CX_000137; CX_000142-CX_000144; CX_000152-CX_000153; CX_000160-CX_000164; CX_000170-CX_000172). The eighth email chain is related to a shipment being sent to a Detroit suburb. (CX_000112-CX_000123). In contrast, reviewing the sea waybills and invoices from Respondent to LGI in the record, none of the sea waybills nor invoices from Respondent show a container destination of Chicago or the Detroit area. (CX_000203-CX_000205; CX_000264-CX_000279; CX_000345-CX_0001185). Thus, none of the eight email chains provide any evidence on the situation in the ports where containers were shipped, such as New York, Houston or Charleston.

¹¹ Decision available at [https://www2.fmc.gov/readingroom/docs/2010\(F\)/\(29\)%202010\(F\)%20Initial%20Decision.pdf/](https://www2.fmc.gov/readingroom/docs/2010(F)/(29)%202010(F)%20Initial%20Decision.pdf/).

the burden of proving – it is the equivalent of not knowing how long the driver took to travel between the points.

Complainant advances other arguments for why the charges here should be considered unjust and unreasonable, but I find none to be persuasive. Complainant argues that the invoices themselves lacked clarity regarding the basis of the charges. (Opening Brief, at 13-14). Complainant also argues that Respondent’s invoices lacked clarity about dispute resolution procedures, including timeframes for disputing fees. (Opening Brief, at 14-15). For support, among other things, Complainant cites the Ocean Shipping Reform Act of 2022 (“OSRA 22”) and essentially argues that OSRA 22 is an example of the Commission recognizing that invoices with detention and demurrage charges should be detailed. (Opening Brief, at 16-17; Reply, at 27; *see also Wan Hai Lines, Ltd. and Wan Hai Lines (USA) Ltd. – Possible Violation of 46 U.S.C. § 41102(c)*, Dkt. No. 21-16, 2022 WL 17830693, at *4-5 (FMC Dec. 15, 2022) (notice not to review)).

The Interpretive Rule provides a variety of considerations that go into determining whether D&D charges are just and reasonable. One factor is the: “existence, accessibility, content, and clarity of policies implementing demurrage and detention practices and regulations, including dispute resolution policies and practices and regulations regarding demurrage and detention billing[.]” including contact information, timeframes, and required information. Another is: “the extent to which regulated entities have clearly defined the terms used in demurrage and detention practices and regulations, the accessibility of definitions, and the extent to which the definitions differ from how the terms are used in other contexts.” (46 C.F.R. §§ 545.5(d)&(e)).

The record contains relatively little information either on how D&D was charged, or how one of Respondent’s customers was to dispute any charges. Complainant notes that Respondent’s witness testified that in the event of a dispute, a client can call a salesperson, but was unable to provide further details. (Anki Dep., CX_000024, pp. 210:6-211:11). The lack of clarity is not ideal and would tend towards a finding of unreasonableness. Nevertheless, it remains the case that, aside from the few charges for which there is specific evidence, which are discussed below, Complainant does not carry its burden of demonstrating that any particular charge was unjust and unreasonable. In other words, regardless of the fact that the charges lacked details, or that there is little detail in the record about the dispute resolution process, there is simply not enough specific evidence to allow me to find that Complainant carried its burden of proving that the \$4,470 in demurrage charges related to container no. TGBU7110345 was unjust or unreasonable. Or, to paraphrase Complainant, nothing in the record demonstrates that LGI or Supply Source were unable to avoid demurrage charges for container no. TGBU7110345 through no fault of their own.

Complainant also argues that Respondent is liable for yard storage charges.¹² Although Respondent’s witness testified more than once that yard storage is not something Respondent charges (Anki Dep., CX_000019, pp. 38:14-39:3; RX027, p. 83:3-13), Complainant argues that

¹² As noted, Complainant failed to prove that Respondent imposed these charges on normal, customary and continuing basis. Nevertheless, I address this argument here for the sake of completeness.

Respondent should be liable for such charges anyway because Respondent had an obligation to make the containers available for pickup. (Opening Brief, at 15-16). There is an evidentiary problem with this argument. Complainant's primary source of evidence for the quantum of yard storage charges is the Invoices Spreadsheet. The Invoices Spreadsheet is not authenticated by anyone. The author is not identified. It purports to show charges that LGI passed along to Supply Source, but only a handful of LGI's invoices to Supply Source are in the record. There is only one LGI invoice in the record that shows yard storage charges, and that invoice gives no indication that Respondent billed LGI, or to anyone else, for yard storage charges. (CX_000052; CX_000124). Therefore, there is no evidence of specific amounts of yard storage charges in the record other than the Invoices Spreadsheet, which cannot alone support a finding of any specific amounts being paid. (*See Rose Int'l, Inc. v. Overseas Moving Network Int'l, Ltd.*, Dkt. No. 96-05, 2001 WL 865708, at *79 (FMC Jun. 7, 2001) (noting that the complainant's profit and loss statements and journal entries were not independently and objectively verified)).

Complainant does provide specific evidence for the demurrage charges related to three containers identified on its Invoices Spreadsheet, all in the form of the exemplar email chains.¹³

First, regarding container no. TCNU2329916, Complainant submits an email chain and invoices from January 4, 2021, through January 12, 2021, between an employee of LGI and an employee of a drayage provider. (CX_000052, CX_000112-CX_000125). In sum, although the last free day was January 6, 2021, the drayage provider was unable to pick up the container due to chassis unavailability or congestion until January 12, 2021. The drayage provider sent several emails documenting efforts to get the container. LGI's invoice to Supply Source shows \$225 in "demurrage/store" charges and "yard storage" charges of \$40. (CX_000052, CX_000124). I am persuaded that Complainant has carried its burden of showing that the \$225 in demurrage/store charges were unjust and unreasonable. The email chain provides evidence that the drayage provider was unable to pick up the container due to a chassis shortage and congestion. Thus, Complainant has demonstrated that no amount of demurrage would have incentivized LGI or Supply Source to pick up the container any sooner. (*Hapag-Lloyd, A.G.*, 2022 WL 1239377 at *30). As for the \$40 in yard storage charges, as noted above, it is unclear that Respondent imposed such a charge. (Anki Dep., CX_000018, p. 32:7-14; CX_000019, pp. 38:14-39:3; RX027, p. 83:3-13). Nor is it clear how Respondent would be liable for this charge.

Second, there is an email chain regarding container no. SEGU6841518, which runs from June 23, 2022, through July 8, 2022. (CX_000160-CX_000164). In the opening email, an employee of Respondent reminds the employees of LGI that the container, which had a last free day of June 21, 2022, needs to be picked up. The same day (*i.e.*, June 23, 2022), an employee of LGI responded, copying an employee of the drayage provider and an employee of Supply Source, indicating that there is a problem with chassis. The email chain also has reminders from Respondent's employee on June 27, 2022, June 29, 2022, July 1, 2022, and July 8, 2022. The July 1, 2022, email included a chart that showed \$2,925 of demurrage charges due. The LGI employee forwarded the July 1, 2022, email to the drayage provider, but there is no response in the record. (CX_000160-CX_000164). I find that this email chain shows that the demurrage

¹³ Although Complainant provided eight exemplar email chains, the charges identified in five email chains are not identified on the Invoices Spreadsheet.

charge for June 23, 2022, was unjust and unreasonable as the container was unable to be picked up that day. Otherwise, it does not show an inability to recover the container on the other days.

Third, there is an email chain regarding container no. BMOU3150032, which runs from July 6, 2022, through July 7, 2022. (CX_000127-CX_000128). The opening email, dated July 6, 2022, is from an employee of Respondent to an employee from LGI; there is no message other than the subject, which states: “Renotification Release.” That same day, an employee from LGI forwarded the July 6, 2022, email to an employee from the drayage provider and asked when the container would be picked up. The employee from the drayage provider responded to the LGI employee on the same date, saying that container is not on a chassis and none are available. The July 7 email is an acknowledgement by the LGI employee. (CX_000127-CX_000128). The attached invoice from LGI to Supply Source, however, shows that the container’s arrival notice was May 10, 2022, and it had an ETA of May 17, 2022. (CX_000130). In other words, it appears that the container was available to be retrieved as of mid-May, and at least one notification prior to the renotification was made. (CX_000127-CX_000128, CX_000130). Although there is evidence that there was an equipment shortage in the same area (*i.e.*, Chicago) on July 6, 2022, as well as June 23, 2022 (*see* CX_000160-CX_000164), there is no evidence of as to why the container could not be picked up from mid-May all the way through July 6, 2022. I am not persuaded, therefore, that it is more likely than not that any of the demurrage fees related to container no. BMOU3150032, including for either July 6, 2022, or June 23, 2022, were unjust and unreasonable.

For these reasons, I find that Complainant does not carry its burden of demonstrating that the demurrage, detention, per diem and yard storage fees that Respondent allegedly charged were unjust and unreasonable, except for the demurrage charge related to container no. TCNU2329916 from January 7, 2021, through January 12, 2021, and container no. SEGU6841518 for June 23, 2022. Complainant’s remaining claims are **DENIED**.

e. The practice proximately caused the claimed loss.

The final element of a claim under § 41102(c) is that the practice must cause the claimed loss. Here, this element is easily met for the limited number of cases where Respondent imposed demurrage charges despite specific evidence that Complainant introduced demonstrating that LGI or Supply Source were unable to retrieve a container from port for specific days.

f. Conclusion regarding § 41102(c)

For these reasons, I find that Complainant does not carry its burden of demonstrating that yard storage charges were imposed on Complainant by Respondent on a normal, customary and continuing basis, and accordingly Complainant’s claims for yard storage charges under § 41102(c) are **DENIED**. In addition, I find that Complainant does not carry its burden of demonstrating that demurrage, detention, per diem and yard storage fees that Respondent allegedly charged were unjust and unreasonable, except for the demurrage charges related to container no. TCNU2329916 from January 7, 2021, through January 12, 2021, and container no. SEGU6841518 on June 23, 2022. Complainant’s remaining claims under § 41102(c) are **DENIED**.

D. Alleged Violation of § 41104(a)(10)

Complainant alleges that the Respondent violated § 41104(a)(10). That statute provides: “A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not . . . unreasonably refuse to deal or negotiate[.]”¹⁴ “To establish a violation of section 41104(a)(10), the Complainant must establish that (a) Respondents are common carriers, (b) Respondents refused to deal or negotiate, and (c) such refusal was unreasonable.” (*OJ Commerce*, 2023 WL 3969857, at *22). I address each element in turn.

1. Common Carrier

The first element is whether the Respondent was a common carrier. This is substantially similar to the first element of a claim arising under § 41102(c), discussed above. (46 C.F.R. § 545.4). Accordingly, the analysis is the same: to the extent there is no sea waybill or invoice showing that a container travelled overseas from a port in another country to a port in the United States, Complainant has not introduced evidence sufficient to show that Respondent was acting as a common carrier. Therefore, all claims arising under § 41104(a)(10) and related to any of the 381 container shipments listed in Appendix A from lines 247-627 are **DISMISSED** due to the lack of evidence showing that Respondent was acting as a common carrier.

The remaining elements of § 41104(a)(10) are discussed as to the claims related to the 245 container shipments for which there is a sea waybill or invoice.

2. Refusal to deal or negotiate

The second element is the refusal to deal or negotiate. Complainant argues that although Respondent was aware of widespread, systemic problems, Respondent repeatedly failed to respond to legitimate issues raised by LGI, and continued to impose demurrage and other charges. (Opening Brief, at 20-22; Reply, at 11). Complainant points to three exemplar email chains as evidence that LGI and Safety Source brought concerns to Respondent’s attention. (*Id.*, see also CX_000152-CX_000153; CX_000160-CX_000164; CX_000170-CX_000172). Complainant also appears to argue that Respondent had an affirmative duty to initiate negotiations with Complainant. (Reply, at 39). Finally, Complainant argues that Respondent failed to respond appropriately to Complainant’s discovery requests.

For there to be a refusal to deal or negotiate, there must be: “an affirmative act by a party to deal or engage in negotiations with the common carrier.” (*OJ Commerce*, 2023 WL 3969857, at *29 (quoting *Definition of Unreasonable Refusal To Deal or Negotiate With Respect to Vessel Space Accommodations Provided by an Ocean Common Carrier* (“*Definition NPRM*”), 87 FED. REG. 57674, 57677)). Complainant does not carry its burden of demonstrating that there was any attempt by LGI or Supply Source to deal or negotiate with Respondent regarding the charges at issue. Complainant cites to three exemplar email chains where the Respondent’s employees were

¹⁴ The statute was amended by OSRA 22, to add the following after “negotiate”: “, including with respect to vessel space accommodations provided by an ocean common carrier[.]” (See OSRA 22 (Pub. L. 117-146), Section 7(a)(1)(D)). Although OSRA 22 was effective June 16, 2022, the amendment does not appear to be relevant to this proceeding.

made aware of equipment shortages or congestion. (Opening Brief, at 20-22, Reply at 11; CX_000152-CX_000153; CX_000160-CX_000164; CX_000170-CX_000172). But, there is no specific request for an accommodation or extension of free time in any of the three email chains. (CX_000152-CX_000153; CX_000160-CX_000164; CX_000170-CX_000172). Aside from these three emails, Complainant's witness testified, via a Declaration, that LGI disputed the charges at issue. (Hallett Decl., CX_000004, ¶ 15). Without any corroboration, this statement alone is not persuasive. There is no other evidence in the record of any request by LGI or Supply Source for an accommodation. Therefore, Complainant does not carry its burden of proof.¹⁵

Complainant argued that Respondent did not respond properly to Complainant's document requests seeking communications between Respondents on the one hand, and LGI and/or Safety Source on the other hand. (Opening Brief, at 21-22; Reply, at 40-41). Therefore, Complainant argues that adverse inferences should be drawn against Respondent. (Opening Brief, at 6). Assuming, without deciding, that Respondent did not comply with Complainant's valid discovery requests, Complainant never filed a motion to compel. Therefore, I may not draw adverse inferences from Respondent's failure to comply with discovery requests. (*See PANYNJ*, 2019 WL 1376529, at *2-3 (denying a motion for an adverse inference due to allegedly deficient document production, stating: "An adverse inference is not appropriate for documents for which a motion to compel was not filed and that were never ordered to be produced.")).

Finally, Complainant argues that Respondent took no affirmative steps to initiate negotiations regarding the mounting demurrage charges. Complainant asserts: "Respondent took no steps to deal or negotiate with the mounting demurrage, detention, per diem, and other accessorial charges it also imposed on Laufer and Complainant's Predecessors during 2021-2022." (Reply, at 39). Complainant, however, cites no authority for this proposition. Regardless, this argument presupposes that the charges at issue were unjust and unreasonable – indeed, if the charges were not unjust and unreasonable, Respondent would have no reason to initiate discussions. As noted in the discussion of § 41102(c) above, Complainant does not carry the burden of demonstrating that the vast majority of the claims at issue were unjust and unreasonable. Accordingly, Complainant's argument that Respondent took no affirmative steps to initiate negotiations is not persuasive.

Accordingly, I find that Complainant has not satisfied the second element of a claim under § 41104(a)(10) – that there was a refusal to deal or negotiate. Complainant's claims under § 41104(a)(10) are all **DENIED**. I do not reach the third element.

E. Reparations

The Commission "shall direct the payment of reparations to the complainant for actual injury caused by a violation" of the Shipping Act. (46 U.S.C. § 41305(b)). The term "actual injury" includes "the loss of interest at commercial rates compounded from the date of injury." (46 U.S.C. § 41305(a)). Complainant bears the burden of proving that it is entitled to reparations.

¹⁵ Complainant argues that Respondent did not specifically challenge the second and third elements of a claim under § 41104(a)(10). (Reply, at 36-37). I do not agree. Respondent argued that Complainant did not demonstrate that it attempted to initiate dealings or negotiations. (Response, at 36).

(*MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, Dkt. No. 16-16, 2022 WL 2209421, at *3 (FMC June 10, 2022)). The Commission explained that: “(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation.” (*MAVL Capital*, 2022 WL 2209421, at *3 (quotations omitted)). Reparations will only be awarded based on actual damages. (*MAVL Capital*, 2022 WL 2209421, at *3) (citations omitted). “Actual damages means ‘compensation for the actual loss or injuries sustained by reason of the wrongdoing’ which complainants must show to a reasonable degree of certainty.” (*MAVL Capital*, 2022 WL 2209421, at *3 (quotations omitted)). “That does not require absolute precision but does require evidence sufficient to reasonably infer the actual loss sustained.” (*MAVL Capital*, 2022 WL 2209421, at *3) (citations omitted).

In a long footnote, Respondent argues that only a party that suffered an “actual injury” may be awarded reparations. (Response, at 15-16 n.1). Respondent argues that although Complainant, who was not a “direct purchaser,”¹⁶ obtained an assignment from LGI, the assignment was ineffective because the Service Contract prohibits assignments. Respondent also argues that assignments outside the statute of limitation are time barred. (*Id.*).

Regarding Respondent’s argument that the Service Contract prohibits assignments, this is an incorrect reading of the anti-assignment provision in the Service Contract. The anti-assignment provision does not render an assignment ineffective or invalid; the anti-assignment provision terminates the Service Contract. (RX010).

As for the statute of limitations argument, it is largely inapplicable on the facts here. In general, 46 U.S.C. § 41301(a) provides that if a complaint is filed with the Commission “within 3 years after the claim accrues, the complainant may seek reparations for an injury to the complainant caused by the violation.” A claim accrues, and the statute of limitations typically begins to run, when a defendant commits an act that injures a plaintiff’s business. (*PANYNJ*, 2018 WL 1942720, at *5). The statute of limitations argument is an affirmative defense, (*PANYNJ*, 2018 WL 1942720, at *5), meaning that the burden of proof is on the Respondent. (5 U.S.C. § 556(d)). With regard to demurrage and detention, the Interpretive Rule defines detention and demurrage as encompassing: “any charges, including ‘per diem,’ assessed by” regulated entities. (46 C.F.R. § 545.5(b)). Therefore, a charge must be assessed before detention or demurrage exist.

Applying the statute of limitations here, the original Complaint was filed February 6, 2024. (*See Complaint*). The invoices from Respondent show that the earliest last free date is September 9, 2021, fewer than three years prior to the Complaint. (CX_001121; CX_000588-90). Similarly, the charges related to container nos. SEGU6841518 and BMOU3150032 were from 2022. (CX_000055; CX_000127-CX_000128; CX_000133; CX_000160-CX_000164). As for container no. TCNU2329916, the demurrage was presumably assessed sometime after the container was picked up on January 12, 2021 (CX_000112-CX_000123), and before LGI

¹⁶ Supply Source may have been a “direct purchaser,” even if it LGI performed some services on Supply Source’s behalf. (*See Simple Forwarding*, Dkt. No. 2010(F), Initial Decision, at *14-17). I do not need to decide that issue in this matter, however. As noted in the main text, Respondent has not persuaded me that the assignment from LGI to Supply Source is ineffective.

invoiced Supply Source for the demurrage on April 1, 2021 (CX_000052; CX_000124-CX_000125). If the demurrage was assessed on or after February 6, 2021, then the three-year limitation period would not prevent Complainant from recovering reparations. Because the burden of proof regarding the statute of limitations is on Respondent, I find that the statute of limitations does not bar Complainant from recovering reparations for the demurrage charge on container no. TCNU2329916. As for interest, I find that because there is no evidence of a demurrage charge before the April 1, 2021, invoice from LGI to Supply Source, interest is to run from April 1, 2021.

Because I find that Complainant demonstrated that it was unable to return container no. TCNU2329916 from January 7, 2021, through January 12, 2021, and it paid demurrage of \$225 for that time period (CX_000052, CX_000112-CX_000125), Complainant is entitled to be reimbursed for that amount.

As for container no. SEGU6841518, Complainant demonstrated that the container could not be returned on June 23, 2022. The record shows that as of July 1, 2022, Respondent imposed ten days of demurrage charges for \$2,925. (CX_000161). Because Claimant demonstrated that one day of demurrage charges was unreasonable, the Complainant is entitled to be reimbursed for one-tenth of the charged amount, or \$292.50.

IV. ORDER

Upon consideration of Complainant's Opening Brief, Respondent's Response, Complainant's Reply, the related filings of each, including proposed statements of facts and responses, as well as exhibits, it is hereby:

ORDERED that judgment is **GRANTED** to Complainant under its claim that Respondent violated 46 U.S.C. § 41102(c) by imposing unjust and unreasonable demurrage charges related to container no. TCNU2329916 from January 7, 2021, through January 12, 2021. It is

FURTHER ORDERED that judgment is **GRANTED** to Complainant under its claim that Respondent violated 46 U.S.C. § 41102(c) by imposing unjust and unreasonable demurrage charges related to container no. SEGU6841518 for June 23, 2022. It is

FURTHER ORDERED that Complainant is entitled to reparations from Respondent in the amount of \$225, with interest running on the reparation award from April 1, 2021, as well as reparations in the amount of \$292.50, with interest running from June 22, 2023. It is

FURTHER ORDERED that Complainant's claims identified in Appendix A are **DISMISSED** for lack of jurisdiction. It is

FURTHER ORDERED that Complainant did not carry its burden of proof regarding its alleged violations of 46 U.S.C. §§ 41102(c) and 41104(a)(10), and therefore Complainant's claims are **DENIED**, except as for otherwise specified above. It is

FURTHER ORDERED that this proceeding be **DISCONTINUED**.

Richard C.
Ambrow Jr -S

Digitally signed by
Richard C. Ambrow Jr -S
Date: 2025.03.24
06:11:14 -07'00'

Richard Ambrow
Administrative Law Judge

APPENDIX A

A	B	C	D	E	F	G	H
Reference Number	Master Bill of Lading	Container Numbers	Respondent's Invoice	LGI's Invoice	Sea Waybill	Commission Has Jurisdiction?	Dismissed?
1	L01-142265	YML UE235095253	YML U8770547	CX_001074, CX_000264	CX_000468-CX_000470	Yes	
2	L01-142322	YML UE236223653	YML U8770547	CX_001075, CX_000265	CX_000651-CX_000653	Yes	
3	L01-141728	YML UE236219563	YML U4091731	CX_001075, CX_000265	CX_000471-CX_000473	Yes	
4	L01-141991	YML UE235095254	BEAU4574787	CX_001076, CX_000266	CX_000756-CX_000761	Yes	
5	L01-142195	YML UE236222453	TCNU1870588	CX_001077, CX_000267	CX_000801-CX_000803	Yes	
6	L01-142323	YML UE236223654	TCNU4756310	CX_001079, CX_000269	CX_000792-CX_000794	Yes	
7	L01-142324	YML UE236223650	YML U4016912	CX_001078, CX_000268	CX_000786-CX_000791	Yes	
8	L01-142326	YML UE236223648	TCNU4660311	CX_001078, CX_000268	CX_000654-CX_000659	Yes	
9	L01-142325	YML UE236223649	TGHU5314721	CX_001079, CX_000269	CX_000783-CX_000785	Yes	
10	L01-141726	YML UE236223647	YML U5136014	CX_001080, CX_000270	CX_000810-CX_000812	Yes	
11	L01-142332	YML UE236223716	SEGU6871810	CX_001080, CX_000270		Yes	
12	L01-150176	YML UW226322621	YML U6279986	CX_001081, CX_000271	CX_000660-CX_000662	Yes	
13	L01-1501731	YML UE236219565	BMOU3162373	CX_001082, CX_000272	CX_000462-CX_000464	Yes	
14	L01-140938	YML UE235095141	MAGU5515575	CX_001082, CX_000272		Yes	
15	L01-140132	YML UW232442323	BEAU4828686	CX_001083, CX_000273	CX_000669-CX_000671	Yes	
16	L01-141732	YML UE236219568	TGHU5074385	CX_001083, CX_000273	CX_000804-CX_000809	Yes	
17	L01-142329	YML UE236223655	TCNU4723045	CX_001084, CX_000274	CX_000798-CX_000800	Yes	
18	L01-142331	YML UE236223651	MAGU5555990	CX_001084, CX_000274	CX_001017-CX_001019	Yes	
19	L01-143092	YML UE490353379	YML U4126231	CX_001085, CX_000275	CX_000771-CX_000776	Yes	
20	L01-142202	YML UE236222457	TCNU3954570	CX_001085, CX_000275	CX_000975-CX_000982	Yes	
21	L01-142816	YML UE243764249	BEAU4501374	CX_001086, CX_000276	CX_000474-CX_000476	Yes	
22	L01-142982	YML UE235095308	YML U6066126	CX_001086, CX_000276	CX_000936-CX_000938	Yes	
23	L01-143094	YML UE240146648	YML U4006302	CX_001087, CX_000277	CX_000726-CX_000728	Yes	
24	L01-142193	YML UE236222436	BMOU6186234	CX_001087, CX_000277		Yes	
25	L01-144285	YML UW240288716	TEMU5587257	CX_001088, CX_000278	CX_000972-CX_000974	Yes	
26	L01-142521	YML UE243764211	TCNU4638175	CX_001088, CX_000278	CX_000480-CX_000482	Yes	
27	L01-143008	YML UE235095333	YML U866599	CX_001089, CX_000279	CX_000390-CX_000395	Yes	
28	L01-142049	YML UE232190637	SEGU4524828	CX_001090	CX_000477-CX_000479	Yes	
29	L01-142873	YML UE235095332	GXXU5067170	CX_001091	CX_001023-CX_001025	Yes	
30	L01-143552	YML UE490353343	YML U4017009	CX_001091	CX_001062-CX_001064	Yes	
31	L01-143746	YML UE496001966	TEMU7015060	CX_001092	CX_000687-CX_000689	Yes	
32	L01-141969	YML UE236220845	YML U9012259	CX_001092	CX_000699-CX_000701	Yes	
33	L01-141968	YML UE236220849	TEMU7004981	CX_001093		Yes	
34	L01-141973	YML UE236220853	FSCU5115640	CX_001093		Yes	
35	L01-142189	YML UW226247363	YML U5162754	CX_001094	CX_000459-CX_000461	Yes	
36	L01-141344	YML UE235095140	BMOU3152570	CX_001094	CX_000591-CX_000593	Yes	
37	L01-141268	YML UE236218591	SEGU4337051	CX_001095	CX_000465-CX_000467	Yes	
38	L01-141705	YML UE235095224	YML U6320689				

APPENDIX A

A	B	C	D	E	F	G	H
43	L01-141729	YML UE236219566	YMMU4101439	CX 001095	CX 000663-CX 000668	Yes	
44	L01-141776	YML UE232189900	BMOU5738679	CX 001096	CX 000372-CX 000377	Yes	
45	L01-142176	YML UE236222438	TCNU3067765	CX 001096	CX 000732-CX 000734	Yes	
46	L01-142196	YML UE236222443	YMMU4057110	CX 001097	CX 000744-CX 000746	Yes	
47	L01-142199	YML UE236222450	FDCU0085440	CX 001097	CX 000747-CX 000749	Yes	
48	L01-142203	YML UE236222455	YMMU4056710	CX 001098	CX 000765-CX 000777	Yes	
49	L01-139586	YML UW235212501	BEAU4317731	CX 001098		Yes	
50	L01-141972	YML UE236220846	YMMU4171251	CX 001099	CX 000681-CX 000686	Yes	
51	L01-141970	YML UE236220850	SEGU6172963	CX 001099	CX 000690-CX 000692	Yes	
52	L01-142047	YML UE232190408	BEAU4485102	CX 001100	CX 000378-CX 000383	Yes	
53	L01-142045	YML UE232190409	YMMU4053032	CX 001100	CX 000384-CX 000389	Yes	
54	L01-142192	YML UE236222439	TEMU7661543	CX 001101	CX 000735-CX 000737	Yes	
55	L01-142194	YML UE236222440	YML U4957000	CX 001101	CX 000738-CX 000743	Yes	
56	L01-142197	YML UE236222437	CAIU4292880	CX 001102	CX 000729-CX 000731	Yes	
57	L01-142198	YML UE236222452	SEGU4472914	CX 001102	CX 000753-CX 000755	Yes	
58	L01-142201	YML UE236222451	YML U5149691	CX 001103	CX 000750-CX 000752	Yes	
59	L01-142007	YML UW235214518	TCNU1712746	CX 001103		Yes	
60	L01-144980	YML UE236237225	YMMU4008239	CX 001104	CX 000852-CX 000854	Yes	
61	L01-144633	YML UE243764411	SEGU4369022	CX 001104	CX 000999-CX 001004	Yes	
62	L01-143351	YML UE240146677	YML U5706009	CX 001105	CX 000939-CX 000941	Yes	
63	L01-141967	YML UE236220830	TCNU1906700	CX 001106	CX 000672-CX 000674	Yes	
64	L01-143802	YML UE496001959	BEAU4843931	CX 001106	CX 001059-CX 001061	Yes	
65	L01-141974	YML UE236220851	SEGU5394755	CX 001107	CX 000693-CX 000698	Yes	
66	L01-142200	YML UE236222454	BEAU4484261	CX 001107	CX 000762-CX 000764	Yes	
67	L01-142220	YML UE236222456	YML U8627006	CX 001108	CX 000768-CX 000770	Yes	
68	L01-142320	YML UE496001926	TCKU6007209	CX 001108	CX 001056-CX 001058	Yes	
69	L01-142321	YML UE496001923	SEKU4039914	CX 001109	CX 001053-CX 001055	Yes	
70	L01-141035	YML UW236626643	YMMU6299112	CX 001109		Yes	
71	L01-143303	YML UE236225722	TGHU5265036	CX 001110	CX 000813-CX 000821	Yes	
72	L01-144987	YML UE236237445	TCNU4609897	CX 001110	CX 000861-CX 000863	Yes	
73	L01-140131	YML UW232442322	BMOU5965604	CX 001111		Yes	
74	L01-141589	YML UW236629260	TLLU6175764	CX 001111		Yes	
75	L01-143694	YML UE235095469	YMMU6044997	CX 001112	CX 000495-CX 000497	Yes	
76	L01-141730	YML UE236219550	TGBU5372217	CX 001112	CX 000645-CX 000650	Yes	
77	L01-141971	YML UE236220844	YMMU4027481	CX 001113	CX 000675-CX 000677	Yes	
78	L01-142014	YML UE240146352	YMMU4004594	CX 001113	CX 000933-CX 000935	Yes	
79	L01-142205	YML UE236222433	YMMU6350889	CX 001114	CX 000723-CX 000725	Yes	
80	L01-139662	YML UW232439795	TCKU6012078	CX 001114		Yes	
81	L01-141348	YML UW245290445	BMOU6322412	CX 001115		Yes	
82	L01-141777	YML UW235214333	TGBU7110345	CX 001115		Yes	
83	L01-141269	YML UE236218582	YMMU4136841	CX 001116	CX 000579-CX 000584	Yes	
84	L01-139588	YML UW235212939	CAIU7994005	CX 001116		Yes	
85	L01-141270	YML UE236218589	YML U8985545	CX 001117	CX 000585-CX 000587	Yes	

APPENDIX A

A	B	C	D	E	F	G	H
86 L01-141807	YML UE496001897	YMMU6384410	CX 001117		CX 001050-CX 001052	Yes	
87 L01-141287	YML UW235214114	TEMU8600732	CX 001118			Yes	
88 L01-140434	YML UW236620308	BEAU4309192	CX 001118			Yes	
89 L01-145309	YML UE235095720	TGHU5265118	CX 001119		CX 000513-CX 000515	Yes	
90 L01-146150	YML UE235095846	TCNU3825063	CX 001119		CX 000525-CX 000527	Yes	
91 L01-145413	YML UE235095701	CXDU2325182	CX 001120		CX 000510-CX 000512	Yes	
92 L01-145963	YML UE240148236	YML U5057872	CX 001120		CX 000951-CX 000953	Yes	
93 L01-141267	YML UE236218390	TGHU5313751	CX 001121		CX 000588-CX 000590	Yes	
94 L01-141271	YML UE236219140	BMOU6837233	CX 001122		CX 000639-CX 000644	Yes	
95 L01-152373	YMPRW232483782	BMOU5529848	CX 001122			Yes	
96 L01-146482	YML UE235095845	YMMU6064925	CX 001123		CX 000522-CX 000524	Yes	
97 L01-139945	YML UW235213437	SEGU4566192	CX 001123			Yes	
98 L01-143617	YML UW236649345	CAIU4575392	CX 001124			Yes	
99 L01-140432	YML UW236617623	YML U8977576	CX 001124			Yes	
100 L01-146063	YML UW240292105	TCKU4334115	CX 001125			Yes	
101 L01-143799	YML UW236653942	YML U5192996	CX 001125			Yes	
102 L01-141273	YML UW245290505	TCNU3822465	CX 001126			Yes	
103 L01-141038	YML UW236626644	TLLU4418525	CX 001126			Yes	
104 L01-143863	YML UE490353542	YMMU4085575	CX 001127		CX 001020-CX 001022	Yes	
105 L01-143866	YML UE490354024	YMMU4137088	CX 001127		CX 001029-CX 001031	Yes	
106 L01-140372	YML UW245290316	SEGU6523034	CX 001128			Yes	
107 L01-140889	YML UW226238654	YML U8736141	CX 001128			Yes	
108 L01-140929	YML UW236626192	SEGU4480062	CX 001129			Yes	
109 L01-141573	YML UW226240637	TGBU6154061	CX 001129			Yes	
110 L01-142407	YML UE226082845	BEAU4833580	CX 001130		CX 000357-CX 000359	Yes	
111 L01-143864	YML UE490354017	TGBU7100481	CX 001130		CX 001026-CX 001028	Yes	
112 L01-146371	YML UE232194439	YML U8674137	CX 001131		CX 000438-CX 000443	Yes	
113 L01-145412	YML UE235095700	TCNU3916369	CX 001131		CX 000507-CX 000509	Yes	
114 L01-146374	YML UE232194453	TCNU3791852	CX 001132		CX 000444-CX 000449	Yes	
115 L01-146464	YML UE236242685	CAIU7962498	CX 001132		CX 000903-CX 000905	Yes	
116 L01-143768	YML UW236647083	SEGU6389840	CX 001133			Yes	
117 L01-142649	YML UW232450337	SEGU5912659	CX 001133			Yes	
118 L01-145624	YML UE232193465	FFAU1300480	CX 001134		CX 000408-CX 000413	Yes	
119 L01-144745	YML UE235095656	TCNU3570846	CX 001134		CX 000501-CX 000503	Yes	
120 L01-141411	YML UE236218652	TCNU4185931	CX 001135		CX 000594-CX 000602	Yes	
121 L01-141410	YML UE236218653	FCIU7527816	CX 001135		CX 000603-CX 000611	Yes	
122 L01-138772	YML UE22606397	BMOU3152800	CX 001136		CX 000348-CX 000356	Yes	
123 L01-151505	YML UW236722988	BEAU4501780	CX 001136			Yes	
124 L01-144199	YML UE236232869	TCNU3053165	CX 001137		CX 000825-CX 000833	Yes	
125 L01-149706	YML UW236700216	YMMU4125488	CX 001138			Yes	
126 L01-146606	YML UW235217273	YML U5181374	CX 001138			Yes	
127 L01-148365	YML UW232468443	CAIU7962970	CX 001139			Yes	
128 L01-141415	YML UW226241368	YMMU6314665	CX 001139			Yes	

APPENDIX A

	A	B	C	D	E	F	G	H
129	L01-146058	YML UE226095893	YML U5150080	CX 001140		CX 000360-CX 000362	Yes	
130	L01-144350	YML UE232192600	TCNU2184962	CX 001140		CX 000402-CX 000407	Yes	
131	L01-143822	YML UE240147115	YMMU4135399	CX 001141		CX 000942-CX 000944	Yes	
132	L01-144442	YML UE490355485	YMMU6170172	CX 001141		CX 001032-CX 001034	Yes	
133	L01-146317	YML UE490357331	SEGU5232918	CX 001142		CX 001035-CX 001037	Yes	
134	L01-142514	YML UW226252785	TEMU7031040	CX 001142			Yes	
135	L01-152261	YMPRW490425054	BEAU4585210	CX 001143			Yes	
136	L01-147047	YML UW235217600	YML U5188893	CX 001143			Yes	
137	L01-148832	YML UW243779567	YMMU4003643	CX 001144			Yes	
138	L01-145259	YML UW240290967	TCKU4725790	CX 001144			Yes	
139	L01-143765	YML UE232191669	YMMU4031820	CX 001145		CX 000396-CX 000401	Yes	
140	L01-143112	YML UE235095379	YMMU6423624	CX 001145		CX 000486-CX 000488	Yes	
141	L01-143779	YML UE236229560	TCNU3521203	CX 001146		CX 000822-CX 000824	Yes	
142	L01-145682	YML UE491305882	YMMU4139917	CX 001146		CX 001038-CX 001040	Yes	
143	L01-146081	YML UE236239002	YML U9026592	CX 001147		CX 000891-CX 000893	Yes	
144	L01-145896	YML UE240148088	FSCU5114622	CX 001147		CX 000945-CX 000947	Yes	
145	L01-146085	YML UE236238981	TCKU4670104	CX 001148		CX 000885-CX 000890	Yes	
146	L01-146084	YML UE236241193	SEGU5636329	CX 001148		CX 000900-CX 000902	Yes	
147	L01-145701	YML UE232193683	YMMU4096081	CX 001149		CX 000414-CX 000422	Yes	
148	L01-140638	YML UW235213963	YML U5721657	CX 001149			Yes	
149	L01-149849	YML UW235219529	YMMU6361081	CX 001150			Yes	
150	L01-141709	YML UW236636098	MAGU5685057	CX 001150			Yes	
151	L01-149981	YML UW236698395	YMMU4130801	CX 001151			Yes	
152	L01-141039	YML UW236629271	TCNU3659738	CX 001151			Yes	
153	L01-141778	YML UW235214334	TCNU4070784	CX 001152			Yes	
154	L01-139648	YML UW235213090	BMOU3176628	CX 001152			Yes	
155	L01-142530	YML UW226250778	TCLU5598300	CX 001153			Yes	
156	L01-145640	YML UE235095782	YMMU4135254	CX 001154		CX 000516-CX 000518	Yes	
157	L01-147841	YML UW226296346	TGBU5546690	CX 001154			Yes	
158	L01-145945	YML UE240148235	YML U5146579	CX 001155		CX 000948-CX 000950	Yes	
159	L01-146393	YML UE240148416	YML U5163914	CX 001155		CX 000954-CX 000959	Yes	
160	L01-143044	YML UE235095378	YML U8259199	CX 001156		CX 000483-CX 000485	Yes	
161	L01-146793	YML UE236244695	SEGU6177414	CX 001156		CX 000909-CX 000914	Yes	
162	L01-145639	YML UE235095783	YML U5171735	CX 001157		CX 000519-CX 000521	Yes	
163	L01-144842	YML UE236237227	CAIU7960216	CX 001157		CX 000858-CX 000860	Yes	
164	L01-146444	YML UE235095953	TGBU5948880	CX 001158		CX 000528-CX 000530	Yes	
165	L01-146724	YML UE240148688	YMMU4003052	CX 001158		CX 000960-CX 000962	Yes	
166	L01-146725	YML UE240148689	YMMU4029144	CX 001159		CX 000963-CX 000965	Yes	
167	L01-147927	YML UE491306272	TCNU1878402	CX 001159		CX 001041-CX 001043	Yes	
168	L01-148390	YML UW235218556	BEAU4303419	CX 001160			Yes	
169	L01-144861	YML UW491326868	YML U8870314	CX 001160			Yes	
170	L01-141412	YML UE236217497	SEGU4253618	CX 001161		CX 000558-CX 000566	Yes	
171	L01-149955	YML UW226317979	CAIU7692200	CX 001161			Yes	

APPENDIX A

	A	B	C	D	E	F	G	H
172	L01-145244	YML UE236238704	TCKU4746600	CX 001162		CX 000876-CX 000884	Yes	
173	L01-139649	YML UW235213091	FFAU1273851	CX 001162			Yes	
174	L01-146692	YML UE226099173	TCKU4411192	CX 001163		CX 000363-CX 000371	Yes	
175	L01-139130	YML UE496001767	FFAU1304778	CX 001164		CX 001044-CX 001046	Yes	
176	L01-141587	YML UW236629268	YML U4972112	CX 001163			Yes	
177	L01-139135	YML UE496001768	YML U5175495	CX 001164		CX 001047-CX 001049	Yes	
178	L01-141570	YML UE236215850	SEKU4034830	CX 001165		CX 000543-CX 000551	Yes	
179	L01-141568	YML UE236218115	FBLU0154020	CX 001165		CX 000573-CX 000578	Yes	
180	L01-142790	YML UE236221077	BEAU4308766	CX 001166		CX 000708-CX 000716	Yes	
181	L01-142792	YML UE236221132	TLLU4783765	CX 001166		CX 000717-CX 000722	Yes	
182	L01-139396	YML UW226219711	YML U8600875	CX 001167			Yes	
183	L01-140820	YML UW226228254	FSCU5124847	CX 001167			Yes	
184	L01-140435	YML UW236620307	YMMU4022540	CX 001168			Yes	
185	L01-139846	YML UW236615652	YML U8693374	CX 001168			Yes	
186	L01-145068	YML UW232456694	BEAU4830554	CX 001169			Yes	
187	L01-146291	YML UW245291302	YML U8615598	CX 001170			Yes	
188	L01-145463	YML UW236659105	TCKU4784391	CX 001170			Yes	
189	L01-148988	YML UW245291669	SEGU4570459	CX 001171			Yes	
190	L01-149482	YML UW236698402	YML U9529560	CX 001171			Yes	
191	L01-144436	YML UW216128205	TCKU4780647	CX 001172			Yes	
192	L01-142648	YML UW232450336	BMOU3152170	CX 001172			Yes	
193	L01-144840	YML UE236236425	YML U5142017	CX 001173		CX 000837-CX 000839	Yes	
194	L01-144632	YML UE243764410	MAGU5564076	CX 001173		CX 000996-CX 000998	Yes	
195	L01-144843	YML UE236236428	TEMU8747261	CX 001174		CX 000846-CX 000848	Yes	
196	L01-144983	YML UE236237447	TGHU6755486	CX 001174		CX 000864-CX 000866	Yes	
197	L01-147115	YML UE243764574	SEGU6751245	CX 001175		CX 001005-CX 001007	Yes	
198	L01-140649	YML UW302504634	TCNU1054060	CX 001175			Yes	
199	L01-139877	YML UE236209260	YML U8886331	CX 001176		CX 000534-CX 000542	Yes	
200	L01-150503	YML UE243764792	YMMU6101823	CX 001176		CX 001008-CX 001013	Yes	
201	L01-146705	YML UW235217432	YMMU4080510	CX 001177			Yes	
202	L01-140575	YML UW226235270	YML U8622112	CX 001177			Yes	
203	L01-148986	YML UW245291671	BSIU9934130	CX 001178			Yes	
204	L01-150158	YML UW232475261	TCNU1633800	CX 001178			Yes	
205	L01-143100	YML UE235095413	FBLU0240690	CX 001179		CX 000489-CX 000491	Yes	
206	L01-143101	YML UE235095414	TCNU4178085	CX 001179		CX 000492-CX 000494	Yes	
207	L01-143613	YML UE243764314	SEGU5311540	CX 001180		CX 000983-CX 000986	Yes	
208	L01-144377	YML UE243764374	SEKU4047925	CX 001180		CX 000990-CX 000995	Yes	
209	L01-144744	YML UE235095557	TGBU5169025	CX 001181		CX 000504-CX 000506	Yes	
210	L01-144769	YML UE236236426	YML U5180357	CX 001181		CX 000840-CX 000842	Yes	
211	L01-144841	YML UE236236429	TLLU6177371	CX 001182		CX 000849-CX 000851	Yes	
212	L01-144981	YML UE236237226	CXDU2329470	CX 001182		CX 000855-CX 000857	Yes	
213	L01-144988	YML UE236237448	SEGU6503505	CX 001183		CX 000867-CX 000869	Yes	
214	L01-144986	YML UE236237961	TCNU3090528	CX 001183		CX 000870-CX 000875	Yes	

APPENDIX A

	A	B	C	D	E	F	G	H
215	L01-146028	YML UE232193760	BMOU6833618	CX 001184		CX 000423-CX 000428	Yes	
216	L01-146620	YML UE236243817	YML U8683015	CX 001184		CX 000906-CX 000908	Yes	
217	L01-147846	YML UE236246123	SEGU6528782	CX 001185		CX 000915-CX 000917	Yes	
218	L01-138442	YML UE209055635	YML U3520165		CX_000058; CX_000149- CX_000150	CX_000345-CX_000347	Yes	
219	L01-146370	YML UE232194003	YML U9020629			CX 000429-CX 000437	Yes	
220	L01-149531	YML UE232198882	SEGU4312006			CX 000450-CX 000455	Yes	
221	L01-136811	YML UE235094493	TCNU1079957			CX 000456-CX 000458	Yes	
222	L01-144220	YML UE235095579	SEGU5629567			CX 000498-CX 000500	Yes	
223	L01-138379	YML UE236199997	YML U8785948			CX 000531-CX 000533	Yes	
224	L01-141569	YML UE236215851	TEMU7019322			CX 000552-CX 000557	Yes	
225	L01-142250	YML UE236217813	YML U8325330			CX 000567-CX 000572	Yes	
226	L01-141377	YML UE236218923	YML U8744574			CX 000612-CX 000617	Yes	
227	L01-142385	YML UE236218994	TGBU6786150			CX 000618-CX 000623	Yes	
228	L01-142383	YML UE236218995	SEGU5816594			CX 000624-CX 000629	Yes	
229	L01-142387	YML UE236218996	TGHU5314470			CX 000630-CX 000632	Yes	
230	L01-142384	YML UE236218999	FCIU9393568			CX 000633-CX 000638	Yes	
231	L01-142473	YML UE236221069	TCNU3659960			CX 000702-CX 000707	Yes	
232	L01-143992	YML UE236233339	YML U5069641			CX 000834-CX 000836	Yes	
233	L01-144845	YML UE236236427	GXXU5056453			CX 000843-CX 000845	Yes	
234	L01-145730	YML UE236239955	YMMU6256825			CX 000894-CX 000899	Yes	
235	L01-147849	YML UE236246135	TCKU4782927			CX 000918-CX 000920	Yes	
236	L01-147848	YML UE236246798	TGHU5285222			CX 000921-CX 000923	Yes	
237	L01-149698	YML UE236258057	YMMU4016701			CX 000924-CX 000926	Yes	
238	L01-152106	YMPRE236265214	TGHU5061500			CX 000927-CX 000929	Yes	
239	L01-133464	YML UE240141738	TCKU4787493			CX 000930-CX 000932	Yes	
240	L01-144403	YML UE243764371	BMOU5818809			CX 000987-CX 000989	Yes	
241	L01-150601	YML UE243764807	TCKU4333464			CX 001014-CX 001016	Yes	
242	L01-144507	YML UE496001985	YML U8616104			CX_001065-CX_001067; CX 000205	Yes	
243	L01-150504	YML UW470037104	OCGU8048384			CX_001068-CX_001073; CX 000203-CX 000204	Yes	
244	L01-145253	YML UW491327076	SEGU6841518		CX 000160-CX 000168		Yes	
245	L01-146064	YML UW240292331	BMOU3150032		CX 000053-CX_000055; CX 000127-CX 000134		Yes	
246	L01-131491	YML UE226038503	TCNU2329916		CX_000052; CX_000112- CX 000125		Yes	
247	L01-148583	YML UW235218770	SEGU4578320					Dismissed
248	L01-150634	YML UW232476941	BEAU5066760					Dismissed
249	L01-150633	YML UW232476942	TCNU3148213					Dismissed
250	L01-148905	YML UW226305176	BMOU3147698					Dismissed
251	L01-149140	YML UW243779634	BMOU5682271					Dismissed
252	L01-150219	YML UW232475942	TGBU5092474					Dismissed

APPENDIX A

	A	B	C	D	E	F	G	H
253	L01-148582	YML UW235218771	YMMU4164329					Dismissed
254	L01-149904	YML UW236700172	TLLU6003425					Dismissed
255	L01-150199	YML UW232475961	CAIU4312143					Dismissed
256	L01-150104	YML UW490422392	FFAU1506017					Dismissed
257	L01-150198	YML UW232475959	TCNU3656549					Dismissed
258	L01-148429	YML UW235218551	BMOU3150500					Dismissed
259	L01-151014	YML UW232478349	YMMU6264749					Dismissed
260	L01-149135	YML UW243779628	CAIU7685773					Dismissed
261	L01-151216	YML UW232479409	TGBU6368628					Dismissed
262	L01-150675	YML UW245291957	YML U8455000					Dismissed
263	L01-149843	YML UW243779690	TCNU2447082					Dismissed
264	L01-149188	YML UW245291773	OCGU8014954					Dismissed
265	L01-151215	YML UW232479410	YMMU6348161					Dismissed
266	L01-146849	YML UW235217673	YML U8647152					Dismissed
267	L01-150676	YML UW245291958	BEAU4578308					Dismissed
268	L01-149105	YML UW236691858	YMMU6087005					Dismissed
269	L01-147113	YML UW245291432	TGBU5520124					Dismissed
270	L01-148676	YML UW235218816	YML U5151472					Dismissed
271	L01-141588	YML UW236629254	TCNU4609541					Dismissed
272	L01-150196	YML UE470018566	FCIU6623461					Dismissed
273	L01-148455	YML UW490419959	TGBU6763962					Dismissed
274	L01-146850	YML UW235217601	YMMU4155604					Dismissed
275	L01-149848	YML UT600086635	SEGU1430577,					Dismissed
276	L01-148790	YML UW236692091	BMOU3148523					Dismissed
277	L01-144969	YML UW235216029	YML U5191644					Dismissed
278	L01-148791	YML UW236692089	YMMU4030926					Dismissed
279	L01-134983	YML UW245289652	DRYU9815481,					Dismissed
280	L01-147406	YML UW235218001	YMMU4030839					Dismissed
281	L01-147407	YML UW235218004	YMMU4052524					Dismissed
282	L01-148737	YML UW245291668	YML U8851680					Dismissed
283	L01-149229	YML UW245291771	SEKU4071053					Dismissed
284	L01-148581	YML UW235218913	TGHU5314547					Dismissed
285	L01-137914	YML UW243777913	BEAU4330292					Dismissed
286	L01-148584	YML UW235218785	BEAU4821110					Dismissed
287	L01-148970	YML UW226301729	BEAU4892746					Dismissed
288	L01-149348	YML UW236697133	SEGU6171484					Dismissed
289	L01-149287	YML UW490421399	YML U8974427					Dismissed
290	L01-149448	YML UW232473419	YMMU6596954					Dismissed
291	L01-146214	YML UW235217013	FFAU1288888					Dismissed
292	L01-140137	YML UW235213669	BEAU4481196					Dismissed
293	L01-147844	YML UE236246122	YMMU6376559					Dismissed
294	L01-138274	YML UT600080516	BEAU2360209					Dismissed
295	L01-147171	YML UW236677925	TCKU4412455					Dismissed

APPENDIX A

	A	B	C	D	E	F	G	H
296	L01-148230	YML UW243779467	MAGU5786833					Dismissed
297	L01-148412	YML UW235218493	YML U5170050					Dismissed
298	L01-148413	YML UW235218494	YMMU6111647					Dismissed
299	L01-150929	YML UW232478272	TCNU2471690					Dismissed
300	L01-148811	YML UW245291689	TCNU3538398					Dismissed
301	L01-148835	YML UW243779541	CAIU7996986					Dismissed
302	L01-147752	YML UW235218181	DRYU4243151					Dismissed
303	L01-147368	YML UW236679303	SEGU4585504					Dismissed
304	L01-148604	YML UW235218788	SEKU4041130					Dismissed
305	L01-149139	YML UW243779635	YMMU4046943					Dismissed
306	L01-146065	YML UW240292332	YMMU4084732					Dismissed
307	L01-147747	YML UW235218180	YMMU4091578					Dismissed
308	L01-148463	YML UW243779489	DRYU9761889					Dismissed
309	L01-148229	YML UW243779468	TCNU4932174					Dismissed
310	L01-149349	YML UW236697134	YMMU4032826					Dismissed
311	L01-149347	YML UW236696953	YMMU4131346					Dismissed
312	L01-136966	YML UE236189635	YML U9527193					Dismissed
313	L01-141378	YML UW216125624	BEAU2275030					Dismissed
314	L01-150927	YML UW232478268	TCKU6012020					Dismissed
315	L01-144968	YML UW235216028	TGHU5315944					Dismissed
316	L01-145399	YML UW240291520	YML U5165711					Dismissed
317	L01-138190	YML UW243777885	TEMU7680625					Dismissed
318	L01-149339	YML UW236697135	DRYU4243568					Dismissed
319	L01-141036	YML UW236629266	TGBU6048408					Dismissed
320	L01-140165	YML UW235213743	BEAU4522459					Dismissed
321	L01-140104	YML UW235213668	BMOU3151379					Dismissed
322	L01-143800	YML UW236653943	TGHU5264528					Dismissed
323	L01-146657	YML UW232461946	YMMU6573352					Dismissed
324	L01-146665	YML UT600084985	TCKU4786590					Dismissed
325	L01-132553	YML UE240141315	YML U5165521					Dismissed
326	L01-151700	YML UW236724524	FBLU0237459					Dismissed
327	L01-150178	YML UW232475945	TCKU4671245					Dismissed
328	L01-151585	YML UW226340428	TCNU4607343					Dismissed
329	L01-150177	YML UW232475946	YML U8639455					Dismissed
330	L01-151584	YML UW226339784	YMMU4179057					Dismissed
331	L01-148738	YML UW245291675	TEMU8514300					Dismissed
332	L01-148129	YML UW236682469	MAGU5677600					Dismissed
333	L01-147750	YML UW235218184	TCKU4411612					Dismissed
334	L01-147212	YML UW243779274	YML U8837682					Dismissed
335	L01-145397	YML UW240291125	YMMU4100622					Dismissed
336	L01-149340	YML UW232472835	YMMU6125511					Dismissed
337	L01-131947	YML UE243763244	SEGU5430662					Dismissed
338	L01-133270	YML UW236533210	YML U5180552					Dismissed

APPENDIX A

A	B	C	D	E	F	G	H
339 L01-143392	YML UW236647087	YMMU4059067					Dismissed
340 L01-131940	YML UE235093663	TGHU5298750					Dismissed
341 L01-140898	YML UW232446526	TCKU4722044					Dismissed
342 L01-141347	YML UW245290446	YML U8940181					Dismissed
343 L01-141976	YML UW226247362	YML U8649812					Dismissed
344 L01-143947	YML UE243764335	TCNU2633554					Dismissed
345 L01-143685	YML UW226254323	YML U8550162					Dismissed
346 L01-147749	YML UW235218183	DRYU4244292					Dismissed
347 L01-149903	YML UW236700173	SEGU5749731					Dismissed
348 L01-147751	YML UW235218176	TCKU4671461					Dismissed
349 L01-147112	YML UW245291433	TCNU3960166					Dismissed
350 L01-144967	YML UW235216027	YML U5165630					Dismissed
351 L01-147748	YML UW235218182	YMMU4073105					Dismissed
352 L01-148595	YML UW236689995	YMMU4163087					Dismissed
353 L01-148142	YML UW235218357	YMMU6034725					Dismissed
354 L01-133603	YML UE236175328	CAIU7989164					Dismissed
355 L01-142967	YML UW236642597	YML U5147343					Dismissed
356 L01-143691	YML UW235215336	FBLU0149954					Dismissed
357 L01-151013	YML UW232478418	FFAU1511950					Dismissed
358 L01-150197	YML UW232475960	TCNU4073103					Dismissed
359 L01-151012	YML UW232478417	TGHU5263835					Dismissed
360 L01-145465	YML UW236663713	BMOU4807374					Dismissed
361 L01-144017	YML UW235215534	TCNU1938950					Dismissed
362 L01-147325	YML UW236678168	BMOU3182209					Dismissed
363 L01-148739	YML UW245291676	TEMU7647859					Dismissed
364 L01-144181	YML UE236232086	MAGU5506790					Dismissed
365 L01-143692	YML UW235215337	BMOU6282963					Dismissed
366 L01-143693	YML UW235215335	BSIU9775300					Dismissed
367 L01-142911	YML UW236642325	FFAU1309804					Dismissed
368 L01-143926	YML UW235215532	SEGU6886071					Dismissed
369 L01-145007	YML UW235216234	YML U8765330					Dismissed
370 L01-132881	YML UE236172532	FSCU8031162					Dismissed
371 L01-137054	YML UE236190401	MAGU5555460					Dismissed
372 L01-138882	YML UE236202112	YMMU6130591					Dismissed
373 L01-132883	YML UE236172531	YMMU6039455					Dismissed
374 L01-132887	YML UE236172522	YMMU6106424					Dismissed
375 L01-136934	YML UE420100450	YML U8970592					Dismissed
376 L01-145917	YML UW235216792	FSCU5095800					Dismissed
377 L01-142486	YML UW241116747	MAGU2539470					Dismissed
378 L01-149442	YML UW236695620	SEGU4336163					Dismissed
379 L01-148460	YML UW490419746	SEGU5302656					Dismissed
380 L01-144182	YML UE236232059	SEKU4032062					Dismissed
381 L01-137110	YML UE236191283	TCNU3536775					Dismissed

APPENDIX A

	A	B	C	D	E	F	G	H
382	L01-148792	YML UW236692085	TEMU7671372					Dismissed
383	L01-145918	YML UW235216793	YML U5161043					Dismissed
384	L01-146120	YML UW236671327	YML U8592147					Dismissed
385	L01-149444	YML UW236695502	YML U8714899					Dismissed
386	L01-146604	YML UW235217279	YMMU6040380					Dismissed
387	L01-142941	YML UW236645128	CAIU7678603					Dismissed
388	L01-143532	YML UE236228680	TEMU7648496					Dismissed
389	L01-141054	YML UW232447463	YML U5702359					Dismissed
390	L01-133346	YML UE240141676	BMOU3149915					Dismissed
391	L01-143354	YML UW235215135	FFAU1278637					Dismissed
392	L01-142913	YML UW236642337	YML U8530314					Dismissed
393	L01-133408	YML UE236174613	YML U8678071					Dismissed
394	L01-132376	YML UE243763396	YMMU6205577					Dismissed
395	L01-143530	YML UE236229381	FFAU1002546					Dismissed
396	L01-144184	YML UE236232951	BMOU4716150					Dismissed
397	L01-144860	YML UE236234691	YMMU6025472					Dismissed
398	L01-145010	YML UW236656815	YML U8804924					Dismissed
399	L01-143352	YML UW235215136	YML U8838821					Dismissed
400	L01-140311	YML UW26228236	TGHU5266109					Dismissed
401	L01-144183	YML UE236232867	YML U8168720					Dismissed
402	L01-132743	YML UE488013951	BEAU4473734					Dismissed
403	L01-144177	YML UE236232060	BSIU9766611					Dismissed
404	L01-144202	YML UE236232953	SEGU4592817					Dismissed
405	L01-138905	YML UE490348851	TCNU1887301					Dismissed
406	L01-133604	YML UE236175327	TEMU7658961					Dismissed
407	L01-143353	YML UW235215137	CAIU4283425					Dismissed
408	L01-138585	YML UE236199805	OCGU8050843					Dismissed
409	L01-144856	YML UE236235677	TEMU7710191					Dismissed
410	L01-143554	YML UW236645096	TGBU5550582					Dismissed
411	L01-133117	YML UE236172893	SEGU6528930					Dismissed
412	L01-132554	YML UE240141316	YML U4932974					Dismissed
413	L01-145887	YML UW236668395	CAIU9633697					Dismissed
414	L01-142914	YML UW236642327	TCNU3670275					Dismissed
415	L01-131911	YML UE243763303	DRYU4233852					Dismissed
416	L01-144180	YML UE236232954	FSCU5123959					Dismissed
417	L01-142966	YML UW236642598	SEGU6758337					Dismissed
418	L01-137805	YML UE236196514	YML U8626226					Dismissed
419	L01-142035	YML UW235214519	YML U8772350					Dismissed
420	L01-132681	YML UE240141464	TCKU4672895					Dismissed
421	L01-137806	YML UE236196512	BEAU4981015					Dismissed
422	L01-138180	YML UE236197674	YML U8632419					Dismissed
423	L01-137801	YML UE236196494	YML U8960526					Dismissed
424	L01-147080	YML UE236245748	YMMU4047913					Dismissed

APPENDIX A

	A	B	C	D	E	F	G	H
425	L01-132878	YML UE236172535	YMMU6154546					Dismissed
426	L01-132748	YML UE232180310	YML U8776925					Dismissed
427	L01-136964	YML UE236188787	TCK U4334115					Dismissed
428	L01-146730	YML UE236244912	TCNU4750502					Dismissed
429	L01-141789	YML UT600082699	BEAU2374732					Dismissed
430	L01-150538	YML UE465005414	TEMU8503075					Dismissed
431	L01-151218	YML UW232479408	TGCU5039998					Dismissed
432	L01-132238	YML UE243763370	BMOU5723391					Dismissed
433	L01-133114	YML UE236174508	TEMU7032556					Dismissed
434	L01-131937	YML UE235093662	BMOU4722220					Dismissed
435	L01-142910	YML UW236642326	BMOU6283640					Dismissed
436	L01-136869	YML UW232430029	YMMU6278228					Dismissed
437	L01-145464	YML UW236659100	YML U8842992					Dismissed
438	L01-133038	YML UE232180902	TEMU8758081					Dismissed
439	L01-138587	YML UE236200087	FSCU5107006					Dismissed
440	L01-144210	YML UE236232859	FSCU8022200					Dismissed
441	L01-142912	YML UW236642324	YMMU6179328					Dismissed
442	L01-151542	YML UW232480812	BMOU3179648					Dismissed
443	L01-145235	YML UE236238613	DRYU9771300					Dismissed
444	L01-141698	YML UW226242919	FFAU1003481					Dismissed
445	L01-149441	YML UW236695496	TCNU2472336					Dismissed
446	L01-142909	YML UW236642336	TGHU5262320					Dismissed
447	L01-145181	YML UW491326995	YML U8537514					Dismissed
448	L01-144934	YML UW226265869	TJLU6000766					Dismissed
449	L01-142906	YML UW236642330	FSCU5115552					Dismissed
450	L01-132886	YML UE236172524	BMOU6143525					Dismissed
451	L01-137802	YML UE236196516	YML U5721960					Dismissed
452	L01-131813	YML UE243763284	YMMU6251037					Dismissed
453	L01-143597	YML UE236228706	TGBU5515982					Dismissed
454	L01-132659	YML UE226043100	FCIU7596885					Dismissed
455	L01-132350	YML UE243763392	YML U8933006					Dismissed
456	L01-133406	YML UE236174612	YMMU6126740					Dismissed
457	L01-138900	YML UE490349022	SEGU6180167					Dismissed
458	L01-132348	YML UE243763397	TCNU3139295					Dismissed
459	L01-133409	YML UE236174614	TGBU5545729					Dismissed
460	L01-136962	YML UE236188788	TGBU6049934					Dismissed
461	L01-145957	YML UW245291254	MAGU5765790					Dismissed
462	L01-149463	YML UW245291804	OCGU8055871					Dismissed
463	L01-147101	YML UW216130873	SEGU2104174					Dismissed
464	L01-141040	YML UW236629257	YML U5123315					Dismissed
465	L01-145144	YML UW235216335	YML U5137582					Dismissed
466	L01-145838	YML UW245291236	YML U8697533					Dismissed
467	L01-131441	YML UE240140967	BMOU3181650					Dismissed

APPENDIX A

A	B	C	D	E	F	G	H
468 L01-136877	YML UE420100451	CXDU2324648					Dismissed
469 L01-133656	YML UE236175337	SEGU5307745					Dismissed
470 L01-133372	YML UE240141757	TGHU5266048					Dismissed
471 L01-135076	YML UE235094169	YML U8931549					Dismissed
472 L01-137512	YML UE236193867	YML U8961292					Dismissed
473 L01-131149	YML UE243763243	YMMU4023193					Dismissed
474 L01-132680	YML UE240141473	YMMU4103405					Dismissed
475 L01-137310	YML UE236192536	YMMU4147281					Dismissed
476 L01-131808	YML UE235093607	YMMU6095612					Dismissed
477 L01-135759	YML UE236184463	BMOU3165536					Dismissed
478 L01-138348	YML UE236199003	BMOU4255948					Dismissed
479 L01-135375	YML UE236182885	CAU7874566					Dismissed
480 L01-131169	YML UE235093443	FCIU7556603					Dismissed
481 L01-131439	YML UE240140769	FSCU5106587					Dismissed
482 L01-132996	YML UE236173557	SEGU5638569					Dismissed
483 L01-132683	YML UE240141363	SEGU5905222					Dismissed
484 L01-131034	YML UE243763235	SEGU6389265					Dismissed
485 L01-135289	YML UE240142834	YML U8650710					Dismissed
486 L01-137515	YML UE236193880	YML U8993108					Dismissed
487 L01-131567	YML UE240141015	YMMU4142844					Dismissed
488 L01-135861	YML UE226053839	YML U5147847					Dismissed
489 L01-152082	YMPRE470018747	BEAU4885222					Dismissed
490 L01-143496	YML UE236227193	FFAU1508160					Dismissed
491 L01-137514	YML UE236193870	BMOU6328920					Dismissed
492 L01-146790	YML UE236244696	TCNU2011205					Dismissed
493 L01-136312	YML UE420100437	TCNU3580720					Dismissed
494 L01-143279	YML UE236228752	YML U5133268					Dismissed
495 L01-151699	YML UW236724528	YML U5170343					Dismissed
496 L01-147332	YML UE236246197	YML U5720603					Dismissed
497 L01-131650	YML UE243763320	YML U8917350					Dismissed
498 L01-145357	YML UW232457863	YMMU4062327					Dismissed
499 L01-131889	YML UE236170301	YML U5049590					Dismissed
500 L01-131530	YML UE236169138	BEAU4516203					Dismissed
501 L01-145039	YML UE236236312	DRYU4240152					Dismissed
502 L01-133345	YML UE240141673	SEGU5905990					Dismissed
503 L01-131468	YML UE240140768	SEGU5907992					Dismissed
504 L01-130888	YML UE243763212	SEGU6841170					Dismissed
505 L01-138347	YML UE236199004	SEGU6863440					Dismissed
506 L01-152037	YMPRW240303927	TCNU1983943					Dismissed
507 L01-132574	YML UE236171543	TGBU5949079					Dismissed
508 L01-135779	YML UE243763752	TGBU6192971					Dismissed
509 L01-132044	YML UE240141085	TGHU5285623					Dismissed
510 L01-131629	YML UE226038461	TGHU5288807					Dismissed

APPENDIX A

A	B	C	D	E	F	G	H
511 L01-131503	YML UE240140968	YML U5171566					Dismissed
512 L01-136537	YML UE420100447	YML U8536518					Dismissed
513 L01-133291	YML UW236536908	TLL U6013059					Dismissed
514 L01-134895	YML UE240142684	BMOU5706795					Dismissed
515 L01-133782	YML UE240141855	CLHU4667992					Dismissed
516 L01-134885	YML UE240142609	TCKU4413718					Dismissed
517 L01-131511	YML UE240141070	TCNU3972341					Dismissed
518 L01-131531	YML UE236169144	TEMU7648243					Dismissed
519 L01-131912	YML UE243763314	TEMU8612688					Dismissed
520 L01-143280	YML UE236228753	TLL U6006105					Dismissed
521 L01-131565	YML UE240141016	YML U5143008					Dismissed
522 L01-133858	YML UE240141932	YML U5701408					Dismissed
523 L01-134894	YML UE240142686	YML U8558179					Dismissed
524 L01-134728	YML UE236178036	YML U8859634					Dismissed
525 L01-131580	YML UE240141067	YMMU4097560					Dismissed
526 L01-131566	YML UE240141014	YMMU4113677					Dismissed
527 L01-138586	YML UE236199803	BMOU5113871					Dismissed
528 L01-148233	YML UW236685056	BMOU6193573					Dismissed
529 L01-146712	YML UW236674176	DRYU4235285					Dismissed
530 L01-136942	YML UE420100448	MAGU5559613					Dismissed
531 L01-136753	YML UE236188551	SEGU5309394					Dismissed
532 L01-149443	YML UW236695501	TCKU4264532					Dismissed
533 L01-131809	YML UE243763264	TCKU4333079					Dismissed
534 L01-149445	YML UW236695619	TCKU4780570					Dismissed
535 L01-135403	YML UE236183825	TGBU7112116					Dismissed
536 L01-147079	YML UE236245109	TGHU5268478					Dismissed
537 L01-131831	YML UW236519339	TGHU5315585					Dismissed
538 L01-149421	YML UW491328108	TLL U5159882					Dismissed
539 L01-146336	YML UW235217053	TLL U5745100					Dismissed
540 L01-149446	YML UW236698431	YML U4972806					Dismissed
541 L01-134887	YML UE240142607	YML U5716007					Dismissed
542 L01-134893	YML UE240142687	YML U8649962					Dismissed
543 L01-146324	YML UW235216979	YMMU4153290					Dismissed
544 L01-148141	YML UW235218355	YMMU4167375					Dismissed
545 L01-132870	YML UE236172517	YMMU4021523					Dismissed
546 L01-133145	YML UE235093804	YML U8619166					Dismissed
547 L01-133695	YML UE235093874	BEAU5074580					Dismissed
548 L01-132122	YML UE470014702	BMOU3161295					Dismissed
549 L01-135614	YML UE243763729	FCIU7528999					Dismissed
550 L01-132189	YML UE420100404	TCK U4412630					Dismissed
551 L01-132452	YML UE420100398	TCKU4742457					Dismissed
552 L01-131812	YML UE243763272	TCNU3677290					Dismissed
553 L01-132198	YML UE226041476	TEMU8944846					Dismissed

APPENDIX A

A	B	C	D	E	F	G	H
554 L01-134727	YML UE236178027	TGHU5289207					Dismissed
555 L01-132600	YML UE236172307	YMMU4035403					Dismissed
556 L01-134453	YML UE240142285	YMMU4136939					Dismissed
557 L01-135567	YML UE243763730	YMMU6061572					Dismissed
558 L01-143598	YML UE236228704	YMMU6259589					Dismissed
559 L01-134191	YML UE235093850	BMOU6270556					Dismissed
560 L01-136761	YML UE236188550	BMOU6835550					Dismissed
561 L01-133679	YML UE226045937	CAIU4329552					Dismissed
562 L01-135464	YML UE243763700	SEGU4477310					Dismissed
563 L01-143119	YML UE236226996	SEGU6181630					Dismissed
564 L01-134226	YML UE243763572	TCNU2180062					Dismissed
565 L01-134454	YML UE240142244	TGBU6052250					Dismissed
566 L01-134451	YML UE240142284	TGHU5017718					Dismissed
567 L01-132164	YML UE236171046	TGHU5294754					Dismissed
568 L01-132572	YML UE236171534	YML U4849915					Dismissed
569 L01-132267	YML UE236172016	YML U5149726					Dismissed
570 L01-133147	YML UE235093803	YMMU4025072					Dismissed
571 L01-143291	YML UE236227218	YMMU6064463					Dismissed
572 L01-131715	YML UE243763285	YMMU6164272					Dismissed
573 L01-134134	YML UE236177318	BMOU3166091					Dismissed
574 L01-135639	YML UE240143029	BMOU5736188					Dismissed
575 L01-133875	YML UE235093971	CAIU7686872					Dismissed
576 L01-136011	YML UE240143325	SEGU4469459					Dismissed
577 L01-134815	YML UE420100421	TCKU4780441					Dismissed
578 L01-134892	YML UE240142683	TGHU5071365					Dismissed
579 L01-135215	YML UE226050920	TLLU6014564					Dismissed
580 L01-132645	YML UE465004533	TLLU6019308					Dismissed
581 L01-147550	YML UE236247162	YML U8606554					Dismissed
582 L01-137288	YML UE245271623	BMOU6276940					Dismissed
583 L01-137289	YML UE245271624	CAIU7925072					Dismissed
584 L01-131603	YML UE236169541	TEMU7682335					Dismissed
585 L01-147397	YML UE236246800	CXDU2297748					Dismissed
586 L01-133786	YML UE240141828	DFSU7816005					Dismissed
587 L01-133854	YML UE240141952	SEGU5906790					Dismissed
588 L01-133459	YML UE243763488	TEMU7634384					Dismissed
589 L01-134632	YML UE420100419	YMMU4116911					Dismissed
590 L01-131946	YML UE243763263	YMMU6200831					Dismissed
591 L01-132910	YML UE243763444	FCIU7527729					Dismissed
592 L01-134223	YML UE235093918	BSIU9779558					Dismissed
593 L01-143596	YML UE236228679	CAIU7333767					Dismissed
594 L01-133527	YML UE470014718	YMMU4087520					Dismissed
595 L01-136063	YML UE236185598	YMMU6048689					Dismissed
596 L01-134502	YML UE236177328	BEAU4313947					Dismissed

APPENDIX A

A	B	C	D	E	F	G	H
597 L01-133874	YML UE235093970	BEAU4897990					Dismissed
598 L01-132541	YML UE488013954	FFAU1520150					Dismissed
599 L01-134232	YML UE420100413	FSCU5093962					Dismissed
600 L01-135304	YML UE235094219	SEGU6680630					Dismissed
601 L01-135644	YML UE226053011	SEGU6789214					Dismissed
602 L01-133482	YML UE465004600	TCKU4783245					Dismissed
603 L01-133921	YML UE226047258	YML U8918444					Dismissed
604 L01-134886	YML UE240142608	YMMU4122880					Dismissed
605 L01-133696	YML UE235093875	BEAU4475254					Dismissed
606 L01-133856	YML UE240141953	DRYU4237040					Dismissed
607 L01-143573	YML UE236228688	FBLU0237000					Dismissed
608 L01-143292	YML UE236227209	FFAU1504518					Dismissed
609 L01-134637	YML UE420100418	TLLU6012319					Dismissed
610 L01-134792	YML UE240142547	YML U5701970					Dismissed
611 L01-133751	YML UE243763523	YMMU6277432					Dismissed
612 L01-134286	YML UE240142108	TCKU4748413					Dismissed
613 L01-134633	YML UE420100417	YMMU4072217					Dismissed
614 L01-144864	YML UW491326853	BMOU5727139					Dismissed
615 L01-143293	YML UE236227210	BMOU5984543					Dismissed
616 L01-144939	YML UE490356538	BMOU6323390					Dismissed
617 L01-138349	YML UE236198989	FSCU5115779					Dismissed
618 L01-145038	YML UE236236303	SEGU6173316					Dismissed
619 L01-146089	YML UE236239471	TEMU8752925					Dismissed
620 L01-145037	YML UE236236300	TGHU5314017					Dismissed
621 L01-145234	YML UE236238614	YML U4892871					Dismissed
622 L01-143531	YML UE236229380	YML U5075182					Dismissed
623 L01-145844	YML UE236239112	YML U8670023					Dismissed
624 L01-144857	YML UE236235714	YMMU4043944					Dismissed
625 L01-145034	YML UE236236294	YMMU4045736					Dismissed
626 L01-144858	YML UE236235705	YMMU4087198					Dismissed
627 L01-143599	YML UE236228678	YMMU6188660					Dismissed